BY ORDER OF THE COMMANDER
KIRTLAND AIR FORCE BASE

KIRTLAND AIR FORCE BASE
INSTRUCTION 31-218

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Security

MOTOR VEHICLE TRAFFIC SUPERVISION

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This instruction implements Department of the Air Force Instruction (DAFI) 31-218, *Motor Vehicle Traffic Supervision*. This instruction serves as a basis for effective law enforcement and traffic safety operations at Kirtland Air Force Base (KAFB) and applies to all organizations and personnel located on or within the jurisdictional limits of KAFB. Compliance with this publication is mandatory and applies to Department of the Air Force (DAF) military, civilian, Air Force Reserve Command (AFRC), Air National Guard (ANG), military and civilian personnel from other United States (US) military branches assigned or attached to KAFB. The terms "must," "shall" and "will" denote mandatory actions in this instruction. Failure to comply with these requirements provides for administrative, judicial and/or disciplinary action as authorized by federal laws, Uniform Code of Military Justice (UCMJ), Air Force (AF) directives and the laws of the state of New Mexico (NM). This instruction is affected by Air Force Instruction (AFI) 33-332, *Air Force Privacy and Civil Liberties Program*. Refer recommended changes and questions about this publication to the Office of Primary Responsibility (OPR) using the AF Form 847, *Recommendation for Change of Publication*; route AF Form 847s from the field through the appropriate functional chain of command. Ensure that all records created as a result of processes prescribed in this publication are maintained in accordance with (IAW) AFI 33-322, *Records Management and Information Governance Program*, and disposed of IAW Air Force Records Information Management System (AFRIMS) Records Disposition Schedule (RDS). This publication may be supplemented at any level, but all supplements must be routed to the OPR of this publication for coordination prior to certification and approval. Submit requests for waivers through the chain of command to the appropriate tier waiver approval authority, or alternately, to the requestor's commander (CC) for non-tiered compliance items. Suggested Improvements: the

proponent of this publication is the Defense Force Commander (DFC), KAFB, NM. The use of the name or mark of any specific manufacturer, commercial product, commodity, or service in this publication does not imply endorsement by the AF.

SUMMARY OF CHANGES

Para. 1.2.5 was revised/re-organized for readability and clarification. **Para. 3.1.3**. Reserved Parking was revised/re-organized for readability and clarification. Subsequent paragraphs were re-numbered appropriately. **Para. 3.1.4.8** added ATV/UTV (All Terrain Vehicles/Utility Tasks Vehicles) to recreational vehicle definition. **Para. 3.1.4.10**. Curb parking distance changed from 12" to 18" to match NM standard. Section 3.2. was updated to include UTVs in the provisions throughout. **Para. 3.2.1.1** was split/re-numbered for clarification. Subsequent paragraphs were re-numbered appropriately. **Para. 3.2.3.1**. NOTE added CC authority to waive use of head protection during operations/training. **Para. 3.6.6** was removed (redundant with 3.6.8). **Para. 3.7.4.1** reduced formations from three (3) to two (2) abreast when running on roadways. **Para. 4.1.6** leaving children and pets unattended in a vehicle was expanded to clarify/incorporate NHTSA recommendations and provide liability protections for first responders. **Para. 4.1.14** added regarding exhaust systems (noise, fumes, smoke). **Para 4.1.15** added regarding loud sound/music. **Para. 4.3.9.5** changed to reflect new AFJIS processes. **Para. 5.2.2** clarified reciprocity for suspension/revocations from other DoD installations. Section 5.2.3. driving suspension/revocation guidelines were revised. **Table 5.1** was revised. **Para 5.2.5.7** (Reinstatement) was revised. **Attachment 3**, Driver's Suspension/Revocation letter was modified. Minor formatting, spelling, and grammar corrections throughout.

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Chapter 1

PROGRAM OVERVIEW

1.1. Overview.

1.1.1. This instruction prescribes guidance and procedures for the registration of a privately owned vehicle (POV) and the safe and legal operation of all vehicles, both private and Government-owned, when on KAFB property, and specifies conduct subject to enforcement through administrative or judicial forums. This instruction applies to owners and operators of POVs, having a valid need to drive their vehicles on KAFB property. It provides for the registration of POVs, and the safe and legal operation of all vehicles, both privately-owned and government-owned, on KAFB property. Appropriate administrative/judicial action may be taken IAW applicable regulations and directives. IAW Code of Federal Regulations (CFR) 32 CFR 210, *Enforcement of State Traffic Laws on DoD Installations,* and United States Code (USC) 18 USC 13, *Assimilative Crimes Act,* both military members and civilians may be cited and prosecuted in US District Court for violations of this instruction, pertinent federal law, or other federally assimilated state law. Administrative sanctions may also apply.

1.1.1.1. Assimilation of NM Criminal and Traffic Laws, referred to as New Mexico Statutes Annotated (NMSA), is IAW DAFI 31-218 and 18 USC 13. Assimilation of all laws apply to all organizations and personnel located on or within the jurisdictional limits of KAFB, NM. Any conflicts between USC, CFR, NMSA, Department of Defense Instructions (DODI), AF and KAFB guidance will default to the more specific requirement.

1.1.2. A Motor Vehicle is defined as a vehicle propelled by an engine (i.e., an internal combustion engine, hybrid engine or an all-electric engine). For the purposes of this instruction, a motorcycle, moped, and motor scooter (even those operating on an engine which has an internal combustion engine with a capacity of 50 cubic centimeters piston displacement or less) is defined as a motor vehicle, and the operators of these vehicles must meet all driving and operating requirements specified for vehicles in this instruction.

1.2. Guidance.

1.2.1. This instruction establishes installation guidance and procedures to be used in conjunction with DAFI 31-218, 32 CFR 634, *Motor Vehicle Traffic Supervision*, and NMSA.

1.2.2. The 377th Air Base Wing (ABW) CC has delegated authority to the 377th Mission Support Group (MSG) CC to administer the KAFB Motor Vehicle Traffic Supervision program.

1.2.3. The 377 ABW/CC has determined international drivers' licenses are recognized and accepted on KAFB IAW NMSA.

1.2.3.1. Foreign operators must carry their driver's license from their home country. International driver's licenses are valid for a maximum period of 1 year and may be obtained through the American Automobile Association (AAA).

1.2.4. Refusal by vehicle operators to submit to an examination of their vehicle during randomly selected checks at Installation Access Control Points (IACP) may result in denial of base access, suspension of installation driving privileges and possible disciplinary action. The status of the individual (military, dependent, civilian, non-base affiliated) will determine what action is taken.

1.2.5. Refusal to take or complete tests to determine the presence of alcohol and/or drugs will result in immediate revocation of installation driving privileges. Other legal or administrative actions may also be taken. (See **Chapter 5**)

1.2.5.1. Locally trained and certified Security Forces (SF) members conduct Standardized Field Sobriety Tests (SFST) for probable cause to conduct chemical test of a suspected intoxicated driver's blood, breath, or urine.

1.2.5.2. The Model 8000 Intoxilyzer® is used to administer chemical tests of the breath to persons suspected of intoxicated driving. SF members will be certified by the State of NM conduct chemical breath tests.

1.2.5.3. If the subject shows obvious signs of impairment inconsistent with the results of the Intoxilyzer® test a certified Drug Recognition Expert (DRE) will be contacted to conduct an evaluation. If there are no certified DREs in SF, the local police departments will be contacted for assistance. If an evaluation cannot be conducted, Staff Judge Advocate (SJA) will be contacted as to the disposition of the subject.

1.2.6. **Areas Restricted to Official Business Only.**

1.2.6.1. **Munitions Haul Road.** All POVs, bicycles, and pedestrians are prohibited from traveling on this road. The only exception is for official business with permission from the 377th Weapons System Security Squadron (377 WSSS) Site Security Control Center (SSCC).

1.2.6.2. **Areas Controlled by the Department of Energy (DoE)/Sandia National Laboratories (SNL).** Non-DoE/SNL personnel are prohibited from traveling in areas of KAFB controlled by DoE/SNL, unless DoE/SNL gives prior authorization. Most of these areas are marked appropriately, identifying limited access.

1.2.6.3. **Areas Adjacent to the KAFB Perimeter.** All POVs, bicycles, and pedestrians not on official business are prohibited in areas adjacent to the KAFB perimeter. The size of the area and distance from the perimeter will vary based on location and will be clearly identified/marked with appropriate signage. Personnel entering any area for official business will notify the 377th Security Forces Squadron (377 SFS) Base Defense Operations Center (BDOC) at 505-846-7913 prior to entering the area and when departing.

1.2.6.4. **Pedestrians, joggers, and bicyclists.** Are prohibited from traveling on specific portions of Pennsylvania St. and all of Southgate Ave. from 0600-1800 hours on weekdays, excluding holidays, and during hours of darkness unless on official business. Pedestrians, joggers, and bicyclists are prohibited on all portions of Lovelace Rd at any time. The prohibited portions of Pennsylvania St. are located south of Hardin Blvd to the Eastern, Western and Southern most areas of the installation. Deviations must be approved by the

377 ABW/CC. Pedestrians, joggers, and bicyclists are highly encouraged to find alternate means of traveling on Pennsylvania St. and Southgate Ave due to the speed of vehicle traffic and narrowness of the road. Traffic shall slow to at least 30 miles per hour (MPH) when passing pedestrians, joggers, or bicyclists.

1.2.7. **Snow and Ice Emergencies.** Drivers will yield the right-of-way to snow removal vehicles engaged in snow removal operations. During periods of snow and ice emergencies, the 377 ABW/CC may declare special road conditions. Drivers who violate traffic control devices or enter roadways which have been closed due to inclement weather and unsafe conditions are subject to a suspension of their base driving privileges.

1.2.8. After determination of road conditions and roads are closed, it shall be unlawful for any driver to obstruct the flow of traffic due to lack of adequate traction equipment. For the purpose of this provision, snow tires, chains, or 4-wheel drive will be considered adequate equipment.

1.2.9. **Sale of Vehicles.** Vehicles displaying "For Sale" signs will not be left in base parking lots, with exception that such vehicles may be parked in authorized resident parking areas of on-base quarters or the owner's/operator's place of duty during work hours. You may park such vehicles in parking lots adjacent to "service" facilities while owner/operator is conducting official business or is a patron of such service facility. The parking area adjacent to the personal vehicle wash racks on Texas St., near Griffin St. is the only area authorized for display of vehicles for sale. 377th Force Support Squadron (377 FSS) Auto Hobby Center is responsible for control of the parking lot by means of a parking permit issued to each user with suitable user fees assessed.

1.2.10. **Movement of Heavy/Special Purpose Equipment/Vehicles.** While traveling on KAFB roadways or operating vehicles outside work areas, heavy/special purpose or oversized vehicles will be operated in the vehicle's most compact and narrow configuration to preclude blocking road lanes. For example, a road grader will configure so the cutting blade is adjusted inward and is no wider than the rear wheels of the vehicle traveling to and from work sites.

1.2.10.1. Construction equipment to include cranes, front end loaders, bobcats and other heavy equipment driven on KAFB roadways in transition from one work site to another may only be operated when accompanied by a safety escort vehicle(s).

1.2.11. **Barricaded Roadways and Parking Lots.** It is prohibited for any person to move or cause to be removed, any barricade erected by either the 377th Security Forces Group (377 SFG) or 377 MSG Civil Engineer (CE) for the purpose of restricting traffic from entry to any roadway or parking lot. Vehicle operators will not drive around, through, or otherwise circumvent such barriers (i.e., rope, stanchions, pylons, traffic cones, sawhorses) unless directed by 377 SFG personnel, 377 MSG/CE personnel, or other authorized person(s).

1.2.12. **Citations for vehicles with defective equipment.** Vehicle operators not in compliance with the requirements of this publication or related assimilated laws may be cited for operating a defective motor vehicle.

1.2.13. **All vehicles and pedestrians.** Must enter and exit KAFB at established IACPs manned by 377 SFG personnel and/or DoE/SNL security personnel (SNL contractor gate only).

1.2.13.1. When approaching gates during the hours of darkness, all vehicle drivers will dim their lights to the low beam at least 500 feet from the gate. Vehicle drivers will also dim their lights to the low beam when approaching other vehicles on KAFB. Vehicles not equipped with daytime running lights will switch to their parking lights within 100 feet of approaching any gate.

1.2.14. **377 ABW Safety Office (SE).** May, upon coordination with 377 SFS Operations Section (377 SFS/S3O), conduct required safety checks to include seatbelt and Personal Protective Equipment (PPE) checks in the traffic environment.

1.2.15. **Government Owned Vehicles (GOVs).** No one will be allowed to ride in the box/bed of a utility vehicle not intended for occupants unless military necessity dictates otherwise. All cab positions with seat belts will be occupied before anyone is placed in the box/bed of the vehicle. The vehicle operator will ensure all occupants are properly seated and restraints are utilized, if available, prior to placing the vehicle in motion. The vehicle operator is always responsible for all aspects and safe conduct of the vehicle.

1.2.16. **Operating Vehicles off Roadways or in Prohibited Areas.** POVs will not be operated off established roadways or in any other area where prohibited unless approved in writing by the individuals' unit CC, for official business only. GOVs will not be operated off KAFB roadways except under mission-essential requirements. When such operation is required, care will be taken to prevent environmental and vehicle damage.

Chapter 2

ROLES AND RESPONSIBILITIES

2.1. CCs/Directors.

2.1.1. Will notify the 377 SFS Reports and Analysis section (377 SFS/S2R) (505) 846-1319, when any member of their unit (civilian or military) is arrested or detained by off base authorities for any criminal and/or serious traffic infraction that would typically warrant a revocation/suspension of base driving privileges (i.e., driving under the influence (DUI), vehicular manslaughter) by the next duty day following the CC's/director's notification.

2.1.2. Require each member of his/her unit or section operating a GOV or POV be properly licensed and familiar with DAF, KAFB, and NMSA regulations and laws.

2.1.3. Ensure personnel driving motorcycle(s) or moped(s) on the installation are aware of the provisions of the Air Force Motorcycle Safety Program (AFMSP). Personnel must be properly trained and licensed, maintain minimum vehicle liability insurance, and register their motorcycle(s) in a timely manner.

2.2. 377ABW Base Traffic Working Group (BTWG).

2.2.1. The 377 ABW/BTWG is chaired by the 377 MSG/CE Director and will convene quarterly as a minimum.

2.2.2. The purpose of the 377 ABW/BTWG is to review requests for changes to traffic patterns and other traffic related safety issues, review and approve/disapprove permanent reserved parking space requirements not already authorized by this instruction and investigate and resolve parking/traffic issues and safety hazards on KAFB property.

2.2.2.1. All agencies must coordinate issues concerning traffic on KAFB through the 377 ABW/BTWG. The 377 ABW/CC has final approval authority over any issues presented by the 377 ABW/BTWG.

2.2.3. In addition to the 377 MSG/CE Director, the 377 ABW/BTWG is composed of the following members:

2.2.3.1. 377 MSG/CE Base Traffic Engineer (BTE).

2.2.3.2. 377 SFS/CC or designated representative.

2.2.3.3. 377 ABW Safety (377 ABW/SE).

2.2.3.4. Director of Facilities, Sandia National Laboratory (SNL) or designated representative.

2.2.3.5. 150th Special Operations Wing (150 SOW) CC may appoint a primary and alternate representative.

2.2.3.6. 58th Special Operations Wing (58 SOW) CC may appoint a primary and alternate representative.

2.2.3.7. The 377 MSG/CE Director may appoint additional members from other base agencies as needed.

2.2.3.8. 377 ABW/BTWG meetings are open to the public.

2.2.3.9. The 377 MSG/CE Director will appoint a recorder who will be responsible for scheduling meetings, preparing an agenda, documenting meeting minutes, and executing and tracking items that are approved.

2.2.4. The 377 MSG/CE BTE, 377 ABW/SE and 377 SFG, in coordination, shall authorize the placing and maintenance of such traffic control devices on base roadways as they may deem necessary to indicate and carry out the provisions to regulate, warn, or guide traffic. All such traffic control devices erected shall conform to the Manual on Uniform Traffic Control Devices (MUTCD) and be approved by the 377 ABW/BTWG.

2.2.5. Display of Unauthorized Signs, Signals, or Markings. 377 MSG/CE or 377 SFG personnel may remove, without notice, any prohibited sign, signal, or marking hereby declared to be a public nuisance, hazard or not approved by the 377 ABW/CC or 377 ABW/BTWG.

Chapter 3

GUIDANCE AND PROCEDURES

3.1. Management of Reserved Parking. All reserved parking requests, modifications, or revisions will be submitted to 377 ABW/BTWG for consideration and final disposition determinations. The 377 ABW/BTWG is responsible for maintaining and distributing the approved list.

3.1.1. **Reserved Parking Sign Appearance.** KAFB reserved parking signage will follow the guidance set forth in Uniform Facilities Criteria (UFC) 3-120-01, *Air Force Sign Standard*. Reserved parking will use a number system for individual parking and all other reserved parking signage will be approved on a case-by-case basis.

3.1.2. **Authorized Parking.** All authorized parking on KAFB will be identified with white marking stripes or brackets. Any vehicle parked shall be within the lines/brackets painted for that purpose. Parking in unmarked areas is unauthorized and subject to citation. Vehicles with three or more wheels will not park in areas designated for motorcycles. Motorcycle operators will park in designated motorcycle parking areas when available. Where no designated motorcycle parking is available, motorcycles shall be allowed to use full parking spaces.

3.1.3. **The following leadership positions are authorized reserved parking for GOV/POV at their primary work location.**

3.1.3.1. **Organizational Leadership.**

3.1.3.2. Field Operating Agency, Direct Reporting Unit, Wing, Deputy Wing CCs and Deputy CCs, Command Chief Master Sergeants/Senior Enlisted Leaders (SEL), Director of Staff, or equivalent leadership positions.

3.1.3.3. Group CCs, Deputy Group CCs, and Group SELs or equivalent leadership positions.

3.1.3.4. Squadron CCs, Squadron SELs, and Squadron First Sergeants (Air Force Specialty Code (AFSC) 8F000 only) or equivalent leadership positions.

3.1.3.5. **Other authorized reserved parking.**

3.1.3.5.1. GOVs**.** Must be approved by the 377 ABW/BTWG based on unit need and number of available spaces in the requested parking lot.

3.1.3.5.2. Handicap Parking. Handicap parking shall be IAW the Uniform Federal Accessibility standards as mandated in the Architectural Barriers Act guidelines and approved on a case-by-case basis.

3.1.3.5.2.1. Handicap parking spots will be marked with blue lines and the white international symbol of accessibility parking IAW the MUTCD Section 3B.19 Parking Space Markings.

3.1.3.5.2.2. Employees needing an assigned handicap parking space shall provide a copy of the state issued parking permit with the person's name and expiration date on the permit. The parking monitor will forward it along with written explanation why the designation is needed to their Facility Managers who will make the request. **The explanation is not to require a detailed medical report but to indicate that there is a condition of limited access distance required that cannot be reliably addressed by open handicap parking.**

3.1.3.5.2.3. Assigned handicap spaces are expected to be rare and will be determined on a case-by-case basis. Assigned handicap spaces shall be re-validated monthly if not of a permanent nature.

3.1.3.5.2.4. Employees that are provided assigned parking at their primary work locations due to handicap or medical reasons are not permitted to park in assigned spaces at other locations. These employees may utilize open handicap spaces at other than their primary work locations provided that a handicap permit is properly displayed.

3.1.3.5.2.5. Assigned handicap spaces shall be marked with a Handicap Reserved Sign with the organization plate below marked with the organizational symbol followed by a double letter designation, (i.e., 377 ABW CC IAW MUTCD 2B.46 *Parking, Standing, and Stopping Sign*s and UFC 3-120-01*).*

3.1.3.5.2.6. All handicap parking violations will be cited on a Central Violation Bureau (CVB) 1805, *United States District Court Violation Notice (CVB 1805)*, citing NMSA 66-7-352.5A or B, *Unauthorized use; penalties,* regardless of the violator's base affiliation. Offending vehicles are also subject to towing at the owner's expense IAW NMSA 66-7-352.5D, *Unauthorized use; penalties*.

3.1.3.5.3. **Visitor Parking.** Visitor parking will be limited to facilities with a customer service function and must impose a time restriction (i.e., 15 minutes, 1 hour). No more than 10% of the available spaces should be set aside as visitor parking.

3.1.3.5.4. **Carpools.** KAFB will provide preferred parking for carpools or vanpools on a case-by-case basis.

3.1.3.5.5. **Motorcycles.** KAFB will designate reserved parking for motorcycles on a case-by-case basis.

3.1.3.5.6. **Miscellaneous parking.** Facilities with a customer service function may designate no more that 10% of available parking spaces in total for O-6 and above/E-9, expectant mothers/parents with small children (under 2 years of age), etc. These reserved parking spaces must be approved by the 377 ABW/BTWG.

3.1.3.5.7. All other request for reserved parking spaces must be approved by the 377 ABW/BTWG who will document all approved locations and provide a listing to the 377 SFS/S3O and 377 SFS/S2R.

3.1.4. **Parking Restrictions.**

3.1.4.1. Stopping or parking is prohibited (except to avoid traffic congestion or in compliance with a traffic order or device) in the following places:

3.1.4.2. Driveways and Sidewalks. When parked in a driveway, no vehicle shall block any portion of a sidewalk. Driveways are reserved for the occupant of the house. Vehicles blocking a driveway will be towed at the vehicle owner's expense. ***EXCEPTIONS:*** Housing residents may block their own driveway provided it does not create a hazard or block a sidewalk. Emergency response and maintenance vehicles may park in a driveway, temporarily block a driveway or sidewalk while conducting official business.

3.1.4.3. No person shall operate or park a vehicle on any lawns, grass, unpaved surfaces, or seeded area not marked for traffic use, unless for official use or directed by on duty 377 SFG personnel.

3.1.4.4. No person shall park in a service driveway or in any area designated as a loading/unloading area, except when loading or unloading. Vehicle must be attended at all times.

3.1.4.5. No person shall park outside marked stalls or on cross-hatched areas within parking lots where striping is employed, on all roads and service roads except when authorized by appropriate signs or markings (***EXCEPTION:*** Housing areas, picking up/discharging passengers), alongside any vehicle (double parking) except in angle parking, or where prohibited by official signs.

3.1.4.6. Roadway Shoulders**.** Unless otherwise exempted in this instruction, no vehicle will be parked on the shoulder of any roadway unless disabled. Disabled vehicles are subject to being towed at the owner's expense at any time. Disabled vehicles must be towed or removed within 2 hours of becoming disabled. When activity is occurring on Pad 5, disabled vehicles along Hardin Blvd, South Gate Rd., and Pennsylvania St. will be immediately towed at the owner's expense.

3.1.4.7. Buildings**.** No vehicle will be parked at any building, in front of overhead doors, or in any other area which would block or delay emergency response equipment.

3.1.4.8. Recreational and Special Purpose Vehicles. Recreational vehicles (RVs) will not be parked in any parking lot, along any roadway, or in the base housing areas for longer than 48 hours. The only authorized long-term parking areas for RVs are the 377 FSS Fam Camp and the 377 FSS RV storage areas. RVs include, but are not limited to motor homes, boats, camp trailers, popup campers, All Terrain Vehicle (ATV)/UTVs and utility trailers. Vehicles in violation will be impounded at the owner's expense.

3.1.4.9. Parked Facing Traffic Flow Prohibited. No person shall stop, stand, or park a vehicle facing the flow of traffic on streets or in parking lots. Vehicles parked at an angle within parking lots will not be parked facing the flow of traffic. ***EXCEPTION:*** Emergency Response Vehicles may be backed into parking slots to expedite dispatch.

3.1.4.10. Curb Parking. Vehicles stopped or parked on a roadway where there is an adjacent curb shall not be farther than 18 inches from the curb.

3.1.4.11. Private Trailers. Private trailers will not be parked in parking lots designed for mass vehicle parking unless authorized by 377 SFS Operations (377 SFS/S3O) or for the purpose of loading or unloading equipment.

3.1.4.12. Unregistered Vehicles. Individuals who occupy base housing may temporarily park their unregistered vehicle(s) in their respective driveways one time up to 30 days. Unregistered vehicles will not present an unsightly appearance, e.g., have flat tires, be on blocks, have missing fenders, doors, windows, or other major components. It is the responsibility of the base housing office to notify residents of this provision.

3.1.4.13. Vehicle Maintenance. Major maintenance, such as engine overhaul, is prohibited. Such maintenance may only be performed on POVs in the Auto Hobby Center or Base Exchange Service Stations. Do not raise vehicles on jacks or blocks unless attended by responsible individual(s). This does not preclude emergency repairs such as changing a flat tire. Operators of vehicles abandoned or left inoperative in any location other than a designated area shall immediately call the 377 SFS BDOC at 505-846-7913 and arrange to have the vehicle removed as soon as possible. Vehicles presenting a hazard or safety concern are subject to immediate towing at the owner's expense.

3.1.4.14. Inoperative Vehicles. Inoperative vehicles are prohibited from entering the base except when towed directly to the Auto Hobby Center, the Base Exchange Service Station or family housing for repair. Do not park inoperative vehicles on base for more than three days other than at the Auto Hobby Center or the Base Exchange Service Stations. In housing inoperative vehicles will be parked in the driveway or garage.

3.1.4.15. Do not leave a motor vehicle unattended in a restricted or controlled area so that its presence is a safety hazard or has an adverse impact on mission activities.

3.1.4.16. Obstructing the normal flow of traffic. ***NOTE:*** Emergency vehicles, when in the performance of official duties, are excluded from these prohibitions. The above restriction does not apply to maintenance or construction vehicles provided they follow the Federal Highway Administration US Department of Transportation (DOT) Guidelines for Traffic Control.

3.1.4.17. Stopping to Pick Up or Discharge Passengers. A POV or conveyance may stop to pick up or discharge a passenger on any portion of the roadway not controlled by traffic signs, signals, or devices. However, compliance with all existing traffic regulations governing the stopping and parking of vehicles is required. Vehicles will be stopped in a parallel position not more than 18 inches from the curb, on curbed roadways, and headed in the direction of traffic.

3.1.4.18. Housing**.** Parking of vehicles on roadways and streets within the housing area is permitted except when otherwise posted.

3.1.5. **Prescribed Distances.**

3.1.5.1. No vehicle will be parked closer than 15 feet in any direction from a fire hydrant or crosswalk.

3.1.5.2. Parking is prohibited in the following areas.

3.1.5.2.1. Within 25 feet of any intersection (roadway or parking lot).

3.1.5.2.2. Within 20 feet of buildings where the area is designated as a fire lane.

3.1.5.2.3. Within 50 feet of buildings designated for storage of flammable material or explosives.

3.1.5.2.4. Within 15 feet of refuse containers. ***NOTE:*** Marked parking spaces adjacent to "dumpster hides" are authorized.

3.1.5.2.5. Within 20 feet of a driveway entrance for emergency vehicles.

3.1.5.3. Vehicles stopped or parked on a roadway where there is an adjacent curb shall not be farther than 18 inches from the curb.

3.1.5.4. **Fuel Servicing Vehicles.** Fuel servicing vehicles must be parked at least 25 feet apart to provide access for fire control purposes. Fuel servicing vehicles will not be parked within 100 feet of any structure or aircraft, except for refueling purposes.

3.1.5.5. Drivers who accumulate three or more parking violations during any six-month period may have their driving privileges suspended for six (6) months or more. The procedures regarding the suspension and revocation of driving privileges on the installation are set forth in **Chapter 5** of this instruction.

3.1.6. **Traffic Warden Program.** The traffic warden program is designed to allow owner/user units to provide enforcement of reserved parking in their areas of responsibility by citing offenders. Traffic wardens may cite vehicles that are illegally parked in their areas of responsibility only. They may not issue citations for moving violations, expired vehicle registration or for abandonment. Traffic wardens are responsible for keeping a running log of all citations issued.

3.1.6.1. Traffic wardens will be appointed in writing by unit CCs/civilian directors and trained by 377 SFS/S3O. The traffic warden position is valid for a period of one year from the date of the appointment letter. This person must be at least an E-5 or civilian equivalent, competent, honest, and knowledgeable of the task to be performed. In addition, it is suggested this person have no negative documentation in his/her records. Appoint only one primary and one alternate parking warden per building. Submit requests to 377 SFS/S3O. Once trained, all designated personnel are authorized to issue the Department of Defense (DD) Form 1408, *Armed Forces Traffic Ticket*, for parking violations.

3.1.6.2. Traffic wardens are trained by the SF unit on the correct procedures to complete tickets, including the routing process of issued tickets to 377 SFS/S2R. The main difference between a DD Form 1408 issued by a SF member and one by a traffic warden is the special instructions on the back of the pink copy that instructs the violator to contact the traffic warden who issued the ticket, within 24 hours or next duty day, instead of SF. Traffic wardens will provide contact information on parking tickets to enable violators to provide the information necessary to complete the citation.

3.1.6.3. Traffic wardens will practice selective enforcement. They will avoid any appearance of special enforcement campaigns, ticket quotas, or any other "hardnosed" approach. Citations issued by traffic wardens are accountable items. As a rule, if there is any doubt whether a citation should be issued, it will not be issued. Return any citation that is requested to be voided due to an administrative error to 377 SFS/S3O with a concise typed letter explaining why the citation is to be voided. Citations will not be thrown away. Some reasons to void a citation are:

3.1.6.3.1. Warden entered incorrect information.

3.1.6.3.2. Violation occurred outside of legal jurisdiction.

3.1.6.3.3. Citation was not properly completed.

3.1.6.3.4. Reviewing authority determined the citation was not valid for legal or other unforeseen reasons.

3.1.6.4. Traffic wardens will only issue parking citations in the parking lot for which they are authorized. They will not issue citations in parking lots where they have no jurisdiction or authority.

3.1.6.5. All parking citations issued will be delivered to the BDOC for processing within 48 hours or the next duty of the date and time issued. All citations received after the deadline will be voided.

3.1.6.6. **Rebuttal Procedures.** If contact is made with an offender, the parking warden should not argue with the offender, rather the parking warden should inform the offender of the rebuttal procedures. (See **Chapter 5**, **para 5.2.5.6.)**

3.1.6.7. **Temporary Reserved Parking Spaces.** Temporary reserved parking spaces are authorized by parking wardens and will not exceed 7 days. These types of parking spaces are not to be abused to accommodate permanent party or resident personnel.

3.1.6.7.1. Traffic wardens will notify 377 SFS/S3O prior to establishing a temporary reserved parking space.

3.1.6.7.2. The reasons for establishing temporary reserved parking spaces are listed as follows, this is not an all-inclusive list. Direct any question as to whether a reason not listed below is acceptable to 377 SFS/S3O for guidance.

3.1.6.7.2.1. Distinguished Visitors.

3.1.6.7.2.2. Inspection Teams.

3.1.6.7.2.3. Squadron level or higher special event or function.

3.1.6.8. **Warning Tickets.** Parking wardens will not issue warning tickets.

3.1.6.9. **Training.** The 377 SFS/S3O will develop and conduct training for all designated parking wardens. All parking wardens must complete the training prior to carrying out any/all parking warden duties.

3.1.6.9.1. Training will consist of covering the procedures for properly completing a traffic citation. Once training is conducted, the traffic warden will be issued a book of citations for their use.

3.2. Motorcycles, Mopeds, and ATVs.

3.2.1. Motorcycle operators must have a valid state motorcycle operator's license. The vehicle must have a current registration and must display a valid state license plate and valid state inspection sticker (if applicable). Motorcycle operators must carry evidence of compliance with the minimum requirements of the insurance laws or regulations of the state of NM (as applicable). This applies to military personnel while operating a motorcycle on or off the installation.

3.2.1.1. Military motorcycle riders will attend an initial briefing within 30 days from initial assignment to KAFB. Identification as a rider or purchaser of a motorcycle will also be provided.

3.2.1.2. New military motorcycle riders assigned to KAFB are not authorized to operate a motorcycle at any time while on any public road or on KAFB until they have completed an approved Motorcycle Safety course. ***EXCEPTION:*** New military motorcycle riders may operate their motorcycle on KAFB and/or public roads without having completed an approved Motorcycle Safety course if traveling to a Motorcycle Safety course.

3.2.1.3. Traffic laws apply to persons operating motorcycles. Every person riding a motorcycle is granted all the rights and is subject to all the rules applicable to the driver of any other vehicle under this instruction, excluding special provisions.

3.2.1.4. Motorcycle riders shall ride only upon the permanent and regular seat and not carry other persons unless the motorcycle is designed to carry more than one person. A person shall ride upon the motorcycle only while sitting astride the seat facing forward, with one leg on each side of the motorcycle. No person shall operate a motorcycle while carrying any package, bundle or other article that prevents him or her from keeping both hands on the handlebars.

3.2.1.5. All motorcycles are entitled to full use of a lane. No motor vehicle shall be driven in such a manner to deprive a motorcycle the full use of a lane. The operator of a motorcycle shall not overtake/pass in the same lane occupied by the vehicle being overtaken. No person shall operate a motorcycle between lanes of traffic, between adjacent lines or rows of vehicles. Motorcycles will not be operated two abreast in a single lane.

3.2.2. Military personnel (on or off-duty), regardless of if they intend to operate the vehicle on the installation and AF civilian personnel whose position description (PD) requires operating a motorcycle will successfully complete motorcycle safety training, IAW training outlined in DAFI 91-207, *The US Air Force Traffic Safety Program*, **Table 4.1**. Personnel will contact their unit's Motorcycle Safety Representative (MSR) for information on obtaining motorcycle safety training.

3.2.3. **PPE.** Motorcycle, ATV/UTV and Three-Wheeled vehicle operators and riders will wear:

3.2.3.1. **Head Protection.** A helmet, IAW DODI 6055.04, *DOD Motor Vehicle and Traffic Safety*. ***NOTE:*** CCs may waive or authorize use of combat helmets for operating tactical vehicles (e.g., motorcycles and ATV/UTVs) during operations and training based on a risk assessment IAW AFI 90-802, *Risk Management*.

3.2.3.2. Eye Protection IAW DODI 6055.04.

3.2.3.3. Protective Clothing IAW DODI 6055.04.

3.2.3.4. Foot Protection IAW DODI 6055.04.

3.2.3.5. Non-Tactical Motorcycle and ATV/UTV Rider Protection. Operators and riders will wear additional protection items IAW DODI 6055.04.

3.2.4. Headlights will be on at all times when in operation.

3.2.5. A rear-view mirror will be attached to each side of the handlebars or fairings.

3.2.6. No off-road privately owned motorcycle, ATV/UTV, or other type of off-road motor vehicle riding is permitted on the installation unless approved by the Installation CC through the 377 SFS/S3O and 377 ABW/SE.

3.2.7. Privately Owned ATV/UTVs will not be operated on the streets of the base unless properly licensed as a motor vehicle or motorcycle.

3.2.8. **Operation of Go-Carts.** Go-carts will not be operated on the streets of KAFB unless licensed as a motor vehicle.

3.2.9. **Operation of Golf Carts.** Unlicensed golf carts may only be operated on the roadways and parking lots of the Tijeras Arroyo Golf Course. Golf carts will follow most direct route and operators will obey all applicable traffic laws set forth in this instruction. ***EXCEPTION:*** Golf carts used in support of mission-related activities will be used and driven as the mission dictates.

3.2.10. **Operation of Government Owned Low-Speed Vehicles (LSV), Government Owned Recreational Motor Vehicles (RMV) and Government Owned All-Terrain/Utility Vehicles.** In order to meet federal and state laws, members must possess a valid state and government issued driver's license to operate these vehicles. All organizations utilizing these types of vehicles will have mandatory training and ensure documentation training is maintained. A vehicle-specific lesson plan must be developed describing the proper handling and maintenance for each type of vehicle. LSV/RMVs will only be driven in areas with posted speed limits not to exceed more than 35 MPH, unless crossing over an intersection. ATV/UTVs will not be operated on paved roadways unless crossing an intersection or when in support of Special Events or mission requirements.

3.3. Traffic Accident Procedures.

3.3.1. 377 SFS will respond to all on-base major vehicle accidents. 377 SFS personnel will respond to minor vehicle accidents, as determined by the on duty 377 SFS Flight Chief. The Flight Chief must exercise extreme caution when determining whether or not to respond. If it is determined 377 SFS personnel are unable to respond to a minor vehicle accident, the BDOC Controller will inform the operator(s) of the vehicle(s) to proceed to the BDOC to accomplish applicable paperwork.

3.3.1.1. Once all life safety issues are resolved (i.e., Firefighting and or medical treatment), 377 SFS accident investigators at the scene of an accident are in charge of the investigation. Other agencies may conduct their own investigations after the accident investigator(s) complete their investigation or are approved by the accident investigator(s) to enter the scene.

3.3.2. The driver of any vehicle involved in an accident on KAFB and territory under its jurisdiction will immediately stop at the scene of the accident, give or leave name, address, telephone number, and insurance information for the driver/owner of the other vehicle involved. They must report the accident to the BDOC (505)-846-7913 as soon as possible, giving their name, grade, organization and/or address, and location of the accident.

3.3.2.1. A driver involved in a traffic accident must give their name, address, vehicle identification number, license plate number and show his/her driver's license and proof of insurance to responding SF, when involved in a traffic accident.

3.3.2.2. Other persons in a vehicle involved in an accident, witnessing, or discovering an accident will take the above actions. In all cases, vehicle occupants or other witnesses will provide their name, organization or address, and telephone number to investigative personnel who arrive on the scene and to the drivers of any vehicles involved in the accident.

3.3.2.3. When a driver of any vehicle is physically incapable of complying with these reporting requirements and another occupant of the vehicle is capable, the occupant will make the necessary report.

3.3.2.4. The 377 ABW/CC has established $10,000 as the minimum damage limit to have the 377 SFS conduct a detailed (major) accident investigation involving government or private vehicle/property damage only. A detailed accident investigation will be conducted when there is an injury to any party involved. The flight chief or higher authority may direct a detailed accident investigation as they deem necessary.

3.3.2.5. A collision damage claim is a civil matter between two parties, and the 377 SFS will not provide advice or counsel drivers or owners regarding damage claims.

3.3.2.6. The 377th Logistics Readiness Squadron, Vehicle Maintenance Element (377 LRS/LGRVM) will be contacted to provide a damage estimate for all GOVs.

3.3.2.7. Completed vehicle accident reports are filed at 377 SFS/S2R, Bldg. 20202, Duty Phone 505-846-1319. Allow 7–10 duty days for processing or requesting a copy of accident reports and other information pertaining to vehicle accidents. Unit CCs will ensure their personnel retrieve copies of civilian accident reports when a GOV is involved in an accident off-base.

3.3.2.8. IAW DAFI 31-103, *Law Enforcement Operations*, **Attachment 3**, an Air Force Justice Information System (AFJIS) report will be accomplished for all major accidents. A report will also be required for minor accidents when the accident involves a criminal component or results in medical treatment during the investigation or afterwards. When a report is not required, patrolmen will complete an SFS Minor Accident Worksheet (**Attachment 2**), and a detailed blotter entry will be accomplished.

3.3.2.9. The driver of any GOV involved in an accident off base will give aid, properly identify themselves, and notify the appropriate state, county, township, or other police department. He/she will then notify the nearest military installation’s law enforcement office giving his/her name, unit, motor pool and location of accident.

3.3.2.10. The procedures pertaining to accident reports and investigations are set forth in DAFI 31-218, paragraph 4-6. The on-duty SF Supervisor will determine if the vehicle will be driven or moved without the owner's consent if the owner cannot be contacted or the owner refuses to move the vehicle.

3.4. Emergency Vehicles. Appropriately marked GOVs used by police, security, medical staff, fire department, alert crew, command staff and Air Force Office Special Investigations (AFOSI) are authorized emergency vehicles. Civilian police, ambulance and fire vehicles are also recognized as emergency vehicles when on base and responding to an emergency.

3.4.1. These provisions are intended to facilitate movement of emergency vehicles under emergency conditions. These provisions do not protect the driver of an emergency vehicle in the event of his/her reckless disregard for the safety of others.

3.4.1.1. Every authorized emergency vehicle operated on KAFB will be equipped with not less than one rotating/flashing emergency light. Police, security, ambulance, fire department vehicles, and command vehicles should be equipped with red or blue emergency lights. Additionally, authorized emergency vehicles will be equipped with a siren, whistle, or bell in addition to other authorized equipment or distinctive markings. Tactical vehicles operated by the 377 SFG are exempt from this requirement.

3.4.1.2. 377 SFS and AFOSI agents operating unmarked vehicles require only an emergency light and an identifying marker, (i.e., visor pull-down, magnetic signs). 377 SFS Investigators may use a marked patrol vehicle or an unmarked vehicle while wearing civilian clothes when necessary to perform official duties.

3.4.1.3. As a general rule, the drivers of authorized emergency vehicles will not exceed 10 MPH over the posted speed limit when responding with lights and/or sirens.

3.4.1.4. The driver of an authorized emergency vehicle, when responding to actual emergencies/calls, which involve imminent loss of life, serious injury or which may pose a serious threat to the security of base resources may:

3.4.1.4.1. Proceed past a red light, stop signal or stop sign only after slowing down to ensure it is safe to continue.

3.4.1.4.2. Not exceed the speed limit without due regard to existing road conditions and hazards, and not endanger life or property.

3.4.1.4.3. Disregard instructions regarding direction of travel and turning. This exception for the driver of an authorized emergency vehicle should apply only when the driver of such vehicle is using visual and audible signal.

3.4.1.4.4. Not assume right-of-way based solely on the fact that emergency equipment (audio and visual signal) is in operation.

3.4.1.4.5. Not exceed posted speed limits or disregard traffic control devices when responding to a drill or exercise. Use of visual signals (light bars) is optional in these instances and should only be used as necessary to complete the mission. Use of lights during exercises should be carefully controlled by the dispatching agency.

3.4.1.4.6. Use audible signals (sirens or horns) only in an actual response to a situation. Operators will be carefully screened to ensure only qualified personnel are permitted to operate emergency vehicles. All such operators should receive periodic safety briefings from their supervisors.

3.4.1.4.7. Not rely on the foregoing provisions to relieve the operator of an emergency vehicle from the duty to drive with due regard for the safety of all persons, nor shall the operator of an emergency vehicle rely on the foregoing provisions to protect him/her from the consequences of their disregard for the safety of others.

3.4.1.4.8. No driver of a vehicle, other than an emergency vehicle, will follow closer than 500 feet when following a fire department vehicle proceeding to a fire, nor will any driver drive into or park within the block where fire department vehicle has stopped in answer to an emergency. Vehicles will not be driven over an unprotected fire hose without the consent of a fire department official.

3.4.1.4.9. Upon the approach of an emergency vehicle using an audible or visible emergency signal, the driver of any other vehicle will yield the right-of-way and immediately drive to the extreme right side of the roadway clear of any intersection and permit the emergency vehicle to pass.

3.5. Alert (Klaxon™) Vehicles/Lights.

3.5.1. Alert lights on KAFB are used to signify an emergency response by alert aircrew to their assigned aircraft; therefore, alert lights are considered a traffic control device. Whenever alert lights are flashing, all non-emergency traffic (traveling from all directions) shall pull over and come to a complete stop until the alert lights stop flashing.

3.5.2. Drivers of Alert (Klaxon™) vehicles are responsible to ensure other drivers have given the right of way (i.e., pulled over or stopped) prior to passing or proceeding through an intersection).

3.5.3. Do not leave an abandoned or disabled motor vehicle on the Klaxon™ route or in an area likely to cause traffic accidents.

3.6. Operation of Bicycles and Play Vehicles. Every person riding a bicycle upon any roadway on KAFB shall be granted all the rights and be subject to all the rules applicable to the driver of a motor vehicle. Bicyclists must meet standards IAW DODI 6055.04. Violations of this instruction will not be referred to the US Magistrate Judge (i.e., Bicycle traffic violations will be cited via DD Form 1408 only).

3.6.1. **Obedience to traffic devices.** Every person operating a bicycle will obey all traffic laws applicable to vehicles including traffic signs and devices, unless otherwise directed by 377 SFS personnel or any one authorized to direct, control, and regulate traffic (i.e., 377 ABW/SE personnel conducting seatbelt and PPE checks). Whenever authorized signs are erected indicating that a right, left, or U-turn is not permitted, the person operating the bicycle will not disobey the direction of any such sign, except when the person dismounts from the bicycle to make the turn. Then the person will obey the instructions applicable to pedestrians.

3.6.2. **Riding.** No bicycle shall be used to carry more persons at one time than the number for which it was designed and equipped. Bicycle infant seats that are determined by 377 SFS/S3 to make operation of the bicycle unsafe will be removed. Bicyclists will not ride other than upon or astride the bicycle seat. ***EXCEPTION:*** Standing on pedals is permitted.

3.6.3. Bicyclists will ride as near to the right-hand side of the roadway as practical, taking care when passing a standing vehicle or one proceeding in the same direction. No more than two bicyclists will ride abreast.

3.6.4. Bicycles will not be ridden on sidewalks, with the exception of certain provisions along Wyoming Blvd and Gibson Blvd as listed below and bicycles with training wheels or bicycles ridden by children 15 years of age or younger. Children in the housing area with or without training wheels on their bicycles may ride on sidewalks.

3.6.4.1. Bicyclists do not have a 'pedestrians' right of way when riding on a sidewalk unless the bicyclist dismounts and walks the bicycle.

3.6.4.2. Due to the narrow roadways and high traffic volume on Wyoming Blvd and Gibson Blvd, bicycles may be operated on the sidewalks as follows:

3.6.4.2.1. Bicyclists on the East side of Wyoming Blvd may utilize the sidewalk between Wyoming Gate and Club Road or Wyoming Gate and Paintbrush Road.

3.6.4.2.2. Bicyclists on the West side of Wyoming Blvd may utilize the sidewalk between Wyoming Gate and West Sandia Circle.

3.6.4.2.3. Bicyclists must return to the roadway on Wyoming Blvd at Club Road, Paintbrush Road, or West Sandia Circle.

3.6.4.2.4. Bicyclists may ride on the sidewalks on either side of Gibson Blvd.

3.6.4.3. Bicyclists riding on a sidewalk will yield or stop for pedestrians and joggers and only pass when safe to do so after informing the pedestrian or jogger that they intend to pass. At no time will a bicyclist ride to within 5 feet behind or in front of a pedestrian or jogger to pass them without informing the pedestrian or jogger of their intention to pass and the pedestrian or jogger acknowledging the bicyclist's intent.

3.6.5. Bicyclists must stop and show an authorized base credential for installation access to the Installation Access Controller.

3.6.6. The wearing of portable headphones, earphones, or other listening devices (except for hands-free cellular phones/hearing aids) while operating a bicycle is prohibited.

3.6.7. Bicyclists exiting from an alley or driveway will come to a complete stop and will yield the right-of-way to approaching traffic.

3.6.8. Bicycles will not be parked upon a street or sidewalk, which would obstruct traffic or pedestrian flow.

3.6.9. Bicycles used at night will be equipped with a bicycle headlight and taillight/red reflector.

3.6.10. Every bicycle will be equipped with a brake capable of skidding the brake wheel on a dry, level, clean pavement.

3.6.11. Children will not be permitted to ride bicycles that are too large for them to handle safely.

3.6.12. Persons riding upon bicycles of all types, roller skates, sleds or toy vehicles will not be towed or pushed by any other vehicles under any circumstances.

3.6.13. All personnel who ride bicycles on military installations will wear an approved bicycle helmet.

3.6.14. **Mopeds on Bicycle Paths.** Whenever a moped is operated on a designated bicycle path, the operator shall disengage the motor and propel such device by human power.

3.6.15. Workers operating bicycles in areas that require the use of American National Standards Institute (ANSI)-approved helmets (hard hats) for protection from falling and flying objects are allowed to use those helmets instead of approved bicycle helmets.

3.6.16. Wear of highly visible outer garment(s) containing retro-reflective material is mandatory during hours of darkness or reduced visibility. Riders are recommended to wear a highly visible outer garment during daylight hours to enhance their conspicuity.

3.7. Pedestrians Requirements.

3.7.1. Violations of this instruction will not be referred to the US Magistrate Judge. Pedestrian and Running violations may be cited via DD Form 1408 only. Personnel must be in compliance with DODI 6055.04.

3.7.2. **Pedestrian traffic.** Provisions of this paragraph govern pedestrian traffic on the installation and apply to all persons walking/running/jogging on roadways.

3.7.2.1. Pedestrians will obey all traffic control signals.

3.7.2.2. Pedestrians crossing a roadway, other than at an intersection or marked crosswalk, will yield the right-of-way to all approaching vehicles.

3.7.2.3. Pedestrians will use sidewalks when available. Where no sidewalks exist, pedestrians will walk single file facing oncoming traffic and will not walk on roadway pavement (except to cross intersections) unless no other option exists. ***EXCEPTION:*** when otherwise directed during authorized/approved sanctioned meets and sporting events. Light colored/reflective clothing will be worn at night.

3.7.2.4. Troops in Formation will march on the right side of the roadway with the direction of traffic and have the right of way over all traffic except emergency vehicles. Personnel in front and rear ranks will use fluorescent or reflective PPE or organizational clothing with sewn-on reflective tape. Road guards will be provided for safety at intersections. Vehicles will not exceed 15 mph when passing troop formations regardless of the direction of travel.

3.7.3. **Running/Jogging Safety.**

3.7.3.1. When running/jogging on base, all personnel will observe the following:

3.7.3.1.1. Individuals jogging, running, or walking on roadways at night or in inclement weather (e.g., fog, rain, sleet, snow) will wear clothing/accessories containing retro-reflective properties visible from the front and back.

3.7.3.1.2. The wearing of headphones/earphones that cover both ears while jogging in any area on base is prohibited with the exception of jogging tracks or lanes. Joggers and runners will comply with all rules pertaining to other pedestrians.

3.7.3.1.3. Cross intersections and roads at the location of traffic control devices or marked crosswalks when available. When signals and crosswalks are not available yield to traffic.

3.7.3.1.4. Observe all pedestrian control signals.

3.7.3.1.5. Run in the opposite direction of traffic flow when not running as part of a formation.

3.7.4. Military personnel participating in physical training (PT) and runners in groups of six or more will be considered a formation, and will observe the following:

3.7.4.1. No formation will exceed two abreast when running on the installation's public roads.

3.7.4.2. No part of the formation will extend into the left lane or straddle the center line of the road.

3.7.4.3. Road guards will be posted to the front and rear of the formation to alert vehicular traffic to slow down. Road guards will wear reflective vests, and during hours of darkness, will carry flashlights. Individual stragglers from the military formation that are not accompanied by a road guard will follow the guidelines set forth in paragraphs above.

3.7.5. **In-line skates, roller-skates, skateboards.** Wearing of PPE is mandatory IAW DODI 6055.04.

3.7.5.1. During periods of darkness, in-line skates, roller-skates, and skateboards will be permitted only in well-illuminated areas and operators will wear some type of reflective garment.

3.7.5.2. All skating activities are prohibited during hours of high vehicle traffic, or any time operations interfere with vehicle traffic or cause safety hazards to personnel, resources, or personal property. In-line skates, roller-skates, skateboards, and scooters will not be used inside any facilities or on sidewalks or stairs leading to buildings.

3.7.5.3. In-line skates, roller-skates and skateboards are not allowed at the Base Exchange, Commissary, Mountain View Club and Rio Grande Community Center parking lots and sidewalks during the hours of operation.

3.7.5.4. Skating is permitted in vacant parking lots during non-duty hours. Skating is not permitted between parked vehicles.

3.7.5.5. Skating is not permitted on any street or road when sidewalks are available.

3.7.5.6. Skating is permitted in family housing driveways and sidewalks.

3.7.5.7. No props such as jumps, ramps, or any other artificial obstacle course are permitted in any of the approved skating areas with the exception of the skate park at the Youth Center.

3.8. Speed Restrictions.

3.8.1. Unless otherwise posted by sign or otherwise provided below, the speed limit on all streets and roadways throughout the installation is 30 MPH on paved roadways and 15 MPH on unpaved roadways.

3.8.2. The speed limit in housing areas is 15 MPH, unless otherwise posted.

3.8.3. A 15 MPH speed limit will apply when approaching and passing within 200 feet of troops marching or running in formation.

3.8.4. The speed limit is 10 MPH in all parking lots and roads designated as service roads.

3.8.5. Except for safety, no person shall drive a vehicle at such a reduced speed that impedes the normal, orderly flow of traffic.

3.8.6. In addition to the specific speed restrictions imposed by this traffic instruction, no person shall drive a vehicle at a greater rate of speed than is reasonable and prudent under prevailing conditions and without due regard for actual and potential hazards.

3.8.7. The use of radar or laser detection devices to indicate the presence of speed recording instruments or to transmit simulated erroneous speeds is prohibited on the installation, and on other Department of Defense (DoD) installations pursuant to DODI 6055.04. This prohibition does not apply to the authorized use of speed detectors by law enforcement officials.

3.8.8. **Distracted Driving.**

3.8.8.1. Driver distractions are prohibited on KAFB to include but are not limited to: utilizing a hand-held cell phone; video-viewing device; text messaging, video, or picture messaging device; PDA; “Blackberry” or all other electronic devices without using a hands-free device. Handheld use of a global positioning system (GPS) device is considered distracted driving and is not authorized.

3.8.8.2. Vehicle operators on a DoD Installation and operators of GOVs (both on and off of a DoD Installation) will not use cell phones unless the vehicle is safely parked or they are using a hands-free device. The wearing of any other portable headphones, earphones, or other listening devices (except for hands-free cellular phones/hearing aids) while operating a motor vehicle is prohibited. See 32 CFR 210. Use of a hands-free accessory (ear receiver) for cell phone use is only authorized in those instances where the device only covers/is inserted in one ear.

3.8.8.3. Drivers are prohibited from viewing Digital video disc (DVD)/Video monitors (including cell phones and other electronic devices) in the course of driving any vehicle. Nothing in this provision may be used as authority to issue a citation to an emergency responder for using hand-held radios while exercising appropriate due care in the operation of emergency vehicles. For the purpose of this instruction, the term "emergency responders" is defined as: police, security personnel, SF, firefighters, emergency medical services, emergency management personnel, explosive ordnance disposal, bio-environmental and local, state and federal law enforcement officials in the performance of official duties.

3.9. CVB 1805, *United States District Court Violation Notice*.

3.9.1. Any violation issued on a CVB 1805 pursuant to a violation of this instruction or assimilated regulation(s) or law(s) will be cited as a violation of 18 USC 13, KAFBI 31-218, DAFI 31-218, or the pertinent NMSA statute in question as appropriate.

3.10. Vehicle Registration and Insurance.

3.10.1. All POVs entering KAFB must meet all applicable federal, state, and local requirements for registration, licensing, insurance, and safety standards as outlined in DAFI 31-218, applicable NM Law, and this instruction. Vehicles failing to meet these requirements are subject to denial of access to the installation. Violators may be issued traffic citations or receive other appropriate administrative or disciplinary actions. Every registration plate shall be properly and securely fastened in a horizontal position to the vehicle for which it was obtained, clearly legible and free of debris or other obscuring material. Any person operating a POV on KAFB must comply with all provisions of the NM Motor Vehicle Equipment Code as well as DAFI 31-218 and its prescribed supplements. Vehicles not in compliance with all directives may be cited for defective equipment or denied access to the installation.

3.10.2. All POV operators must possess and supply upon demand to law enforcement personnel: a valid and current state driver's license, a valid and current vehicle insurance document, and a valid and current proof of vehicle ownership or State registration card. ***NOTE:*** Electronic insurance cards via smart phone are now authorized for use as proof of insurance.

3.10.3. Special purpose GOV operators must possess and supply upon demand a GOV operator's license. The GOV operator can only operate vehicles that are indicated on the back of the GOV operator's license.

Chapter 4

ADMINISTRATIVE PROCEDURES

4.1. Miscellaneous Motor Vehicle Regulations.

4.1.1. As a matter of traffic safety, wearing headphones or earphones covering both ears is prohibited for motor vehicle, bicycle operators and pedestrians who are on installation roads. This does not negate the requirement for wearing hearing protection when necessary. Drivers who are wearing headphones (other than an authorized hands-free phone accessory) should be cited. Drivers who violate this subparagraph will not be referred to the US Magistrate Judge (and therefore may be cited via DD Form 1408, but not CVB 1805).

4.1.2. Passengers will not be transported in the bed of a vehicle that is transporting oversized items.

4.1.3. All GOVs, when unattended and not in a secure motor pool or other secured authorized area, will be secured in a matter that prohibits unauthorized personnel from placing the vehicle into operation or moving it.

4.1.4. Vehicles will not be left unattended except for legitimate parking in authorized parking areas. No person driving or in charge of a motor vehicle will permit it to stand unattended without first stopping the engine; locking the parking brake; removing the key, and when stopping on any grade, turn the front wheels to the curb or the side of the roadway.

4.1.5. In the event a person's vehicle undergoes a mechanical failure, thus preventing the vehicle from being moved immediately, the driver will take action to prevent the vehicle from obstructing traffic and will notify BDOC immediately of the location of the vehicle and the expected time of removal.

4.1.6. Leaving children 12 years of age and under or pet(s) unattended in a parked or stopped vehicle is prohibited. Children over 12 may remain in the vehicle provided the outside air temperature does not exceed 70 degrees Fahrenheit, one or more windows are open, or the child/children can open the doors and windows. SF, Fire Department, and other emergency response personnel are authorized to make emergency entry to unattended vehicles for the safety of children and/or pet(s). Owners/operators of subject vehicles are liable for any damage incurred as a result of emergency entry. KAFB will not be held responsible. Adults deemed responsible may be criminally charged under state or federal statutes for child endangerment, neglect, or abuse.

4.1.7. Vehicles will not be driven in reverse unless the driver has checked the right-of-way for pedestrians, vehicles, or other obstructions to the rear and both sides. Military vehicles and any vehicles from which the driver cannot see in all directions while backing, will have a spotter to the rear of the vehicle if available.

4.1.8. The owner of a vehicle is responsible for their vehicle at all times and will not knowingly lend or allow their vehicle to be operated on the installation by a person who does not have a valid driver's license or learner's permit. They will also not allow anyone who is under the influence of alcohol or drugs or has a known physical or mental disability that could reasonably be expected to impair his/her ability to safely operate the vehicle.

4.1.9. No owner will lend, lease, or use their vehicle to transport passengers for compensation, except as provided for in other pertinent regulations and state and local laws.

4.1.10. No person will transport in any vehicle on the installation any intoxicating beverage except in its original package or container that is unopened and the seal intact. An opened package or container can be locked in the rear trunk or rear compartment or any other locked outside compartment not accessible to the driver or any other person in the vehicle while it is in motion.

4.1.11. No person will consume or have any opened intoxicating beverage while they are in/on any vehicle located on the installation, whether the vehicle is stationary or in motion.

4.1.12. No person will perform major repairs or overhauls of POVs in parking lots or other unauthorized areas on the installation. Major repairs are those repairs taking longer than 90 minutes to complete. ***NOTE:*** Personnel may add fluid to ensure a vehicle is operated safely, however in the event that the vehicle has a fluid leak, the operator is prohibited from adding the same fluid on multiple occasions without first obtaining proper repair of the vehicle.

4.1.13. No vehicle will be pushed by another vehicle on the installation. When one vehicle is towing another the connection will not exceed 15 feet. A drawbar will be used to tow vehicles without operational brakes. Except in emergency situations, no vehicle will be towed during the hours of darkness. Vehicles being towed must have operable brake lights. When one vehicle is towing another and connection consists of a chain, rope or cable, there will be displayed, upon such a connection, a white flag or cloth not less than 12 inches square.

4.2. Transport of oversized transportation vehicle loads.

4.2.1. Organizations with inbound or outgoing shipments that are oversized will contact the 377 MSG/CE to coordinate delivery. The 377 MSG/CE will coordinate with other agencies (i.e., 377 ABW/SE, 377 SFS, 377 LRS) to determine base access, routes of travel etc.

4.2.2. The following information will be provided to the 377 MSG/CE: length, width, height, and weight of the package to include the tractor-trailer combination.

4.2.3. The 377 MSG/CE will be contacted a minimum of 30 days prior to the planned receipt or departure of the cargo when possible. Short notification will be handled on a case-by-case basis, taking into consideration mission requirements. However, all attempts should be made to provide a minimum of 30 days notification.

4.2.4. All shipments will be properly marked and escorted IAW DOT requirements.

4.3. Vehicle Impoundment and Towing.

4.3.1. No person will abandon a vehicle on any public property without the expressed or implied consent of the owner or person in lawful possession or control of the property.

4.3.2. Unreasonable periods are defined as any vehicle left in public areas for more than 72 hours or unauthorized parking in controlled/restricted areas at any time. Abandoned is defined as any vehicle displaying an unsightly appearance (e.g., flat tires, broken windows, on working blocks, missing parts, etc.) or expired or no displayed license plate. In either case, the vehicle is subject to towing and impoundment.

4.3.3. Implied consent to impoundment. IAW DAFI 31-218 paragraph 2-3, any person granted the privilege to operate or register a motor vehicle on a military installation shall be deemed to have given his or her consent for the removal and temporary impoundment of the POV.

4.3.4. The impoundment of a POV is inappropriate when a reasonable alternative to impoundment exists.

4.3.5. Attempts should be made to contact the owner of the POV and have the vehicle removed. POVs will not be immediately impounded unless they clearly interfere with on-going operations or movement of traffic, threaten public safety or convenience, are involved in criminal activity/are stolen, or are abandoned.

4.3.6. Vehicles will be towed and stored by a private impound company at the owner's expense. Impounded vehicles will be inventoried utilizing DD Form 2506, *Vehicle Impoundment Report*, before they are released to the impound company. Impoundment of a POV is authorized in the following instances.

4.3.6.1. Any unattended vehicle within 15 feet of a fire hydrant or 20 feet of the driveway to any fire, police, ambulance, or crash vehicle entrance or exit that presents any physical obstacle or safety hazard to possible emergency operations.

4.3.6.2. Any unattended vehicle parked in excess of three days in a parking lot/area.

4.3.6.3. Any unattended vehicle parked in violation of base traffic or registration regulations in excess of three days.

4.3.6.4. On duty 377 SFS personnel are authorized to move any vehicle or require the driver (or other person in charge of the vehicle) to move the vehicle to a position off the paved or main-traveled part of the roadway to rectify a hazard or unsafe situation. The vehicle is subject to immediate towing at the owner's expense if the situation can't be immediately resolved.

4.3.6.5. Vehicles when taken as assets of forfeiture.

4.3.6.6. Vehicles operated by personnel who are arrested for DUI (intoxicating liquors or drugs), have refused to submit to a breath test and/or blood test, have a blood alcohol level of .08 or higher, are otherwise deemed impaired, or are found by a DRE to be under the influence of drugs.

4.3.6.7. Operating a vehicle on the installation while driver's license is suspended/revoked. This includes drivers who had their installation driving privileges revoked or suspended.

4.3.6.8. When a driver or owner of the vehicle is in possession of illegal drugs/narcotics or, if there are passengers, the ownership of the illegal drugs/narcotics cannot be determined.

4.3.6.9. The vehicle operator is an unlicensed driver and there is no other licensed driver available to operate the vehicle.

4.3.6.10. The vehicle operator has outstanding warrants and no other driver is present.

4.3.6.11. Driver and/or vehicle is involved in a crime or is evidence of a crime.

4.3.6.12. Vehicle operators cited for driving with no insurance.

4.3.6.13. Vehicles illegally parked in handicapped slots when the driver cannot be located.

4.3.7. **Impounding POVs is not justified in the following instances:**

4.3.7.1. Minor offenses including but not limited to:

4.3.7.1.1. Driving with an expired license.

4.3.7.1.2. Expired license plates and unregistered vehicles.

4.3.7.1.3. The towing and temporary impoundment of a POV will not be used as an overreaction to a parking violation.

4.3.8. **Procedures for impoundment of unattended POVs.**

4.3.8.1. A DD Form 2504, *Abandoned Vehicle Notice*, will be conspicuously placed on POVs considered abandoned. A blotter entry will be completed, and the remaining copies of the DD Form 2504 will be forwarded to the 377 SFS Investigations (S2I). The owner will be allowed three days from the date the POV is tagged to remove the vehicle before impoundment action is initiated. If the vehicle is not removed after three days, the 377 SFS/S2I is authorized to impound the vehicle. A vehicle may be towed/impounded without notice to the owner if its presence presents a traffic hazard or is parked in a tow-away zone.

4.3.8.2. When any vehicle is impounded a blotter entry will be completed documenting the action.

4.3.8.3. 377 SFS/S2I will complete the DD Form 2507, *Notice of Vehicle Impoundment*, which will be forwarded by certified mail to the address of the last known owner of the vehicle to advise the owner of the impoundment action and provide contact information for the vehicle impoundment company.

4.3.8.4. Stolen POVs or vehicles involved in criminal activity.

4.3.8.4.1. Recovered stolen POVs will be released to the registered owner, unless held for evidentiary purposes, or to the law enforcement agency reporting the vehicle stolen, as appropriate.

4.3.8.4.2. A POV held on request of other authorities will be retained in the custody of SF until the vehicle can be released to such authorities.

4.3.9. **Driving Records and the Traffic Point System.** Driving records will be maintained in AFJIS and IAW Chapter 5, DAFI 31-218 and AFI 33-322, on all personnel cited for violations of this instruction. Violations of the installation traffic code will result in assessment of traffic points.

4.3.9.1. **Point Assessment for Moving and Non-Moving Violations.**

4.3.9.1.1. Traffic points will be assessed as prescribed in DAFI 31-218, Chapter 5. Accumulation of points in excess of limits established in DAFI 31-218 may result in the suspension/revocation of installation driving privileges. The point system applies to all operators of vehicles (either privately owned or government owned or leased) cited via DD Form 1408 or CVB 1805, for offenses committed on the installation. The point system also applies to off-base incidents committed by operators of US

Government motor vehicles. Points will be assessed pursuant to Tables **4.1 and 4.2** of this instruction, when the person is found to have committed a violation and the finding is by either the unit CC, civilian supervisor, a military or civilian court (including a US Magistrate Judge), or by payment of fine, forfeiture of pay or allowances, or posted bond, or collateral, (see, DAFI 31-218, paragraph 5-3).

4.3.9.2. **Driver Improvement Measures.** The Installation CC or delegate may require the following driver improvement measures as appropriate:

4.3.9.2.1. Advisory letter through the unit CC or supervisor to any person who has acquired six traffic points within a six-month period.

4.3.9.2.2. Counseling or a driver improvement interview must be conducted by the unit CC of any person who has acquired more than six but less than 12 traffic points within a six-month period. This counseling or interview should produce recommendations to improve driver performance.

4.3.9.2.3. Referral for medical evaluation when a driver, based on reasonable belief, appears to have mental or physical limits that have had or may have an adverse effect on driving performance.

4.3.9.2.4. Attendance at remedial driver training to improve driving performance.

4.3.9.2.5. Referral to an alcohol or drug treatment or rehabilitation facility for evaluation, counseling, or treatment. This action is required for active military personnel in all cases in which alcohol or other drugs are a contributing factor to a traffic citation, incident, or accident.

4.3.9.3. An individual's driving privileges may be suspended or revoked as provided by this instruction regardless of whether these improvement measures are accomplished.

4.3.9.4. Persons whose driving privileges are suspended or revoked (for a violation or an accumulation of 12 traffic points within 12 consecutive months, or 18 traffic points within 24 consecutive months) will be notified in writing through official channels (DAFI 31-218, para 2- 6). Except for the mandatory minimum or maximum suspension or revocation periods prescribed by DAFI 31-218, Table 5-1, the 377 ABW/CC, or delegate, will establish periods of suspension or revocation. Any revocation based solely on traffic points must be no less than six months. A longer period may be imposed based on a person's overall driving record considering the frequency, flagrancy, severity of moving violation, and the response to previous driver improvement measures. In all cases, military members must successfully complete a prescribed course in remedial driver training before driving privileges are reinstated.

4.3.9.5. Points assessed against a person will remain in effect for point accumulation purposes for 24 consecutive months. With the advent of AFJIS, hard copy driving records are no longer maintained. SFS/S2R will review driver records for points accumulation during records update while recording new offenses. Completion of a revocation based on points "resets the clock" and a new 24-month timeline begins.

4.3.9.6. Removal/expiration of points does not authorize removal of driving record entries for moving violations, chargeable accidents, suspensions, or revocation. Recorded entries will remain posted on individual driving records for the period of time indicated below.

4.3.9.6.1. Chargeable nonfatal traffic accidents or moving violations: Three (3) years.

4.3.9.6.2. Non-Mandatory suspensions or revocations: Five (5) years.

4.3.9.6.3. Mandatory revocations: Seven (7) years.

Table 4.1. Point Assessment for Moving Violations.

Violation	Points Assessed
Reckless driving (willful and wanton disregard for the safety of persons or property).	6
Owner knowingly and willfully permitting a physically impaired person to operate the owner's motor vehicle.	6
Fleeing the scene (hit and run)-property damage only.	6
Driving vehicle while impaired (blood-alcohol content more than 0.05 percent and less than 0.08 percent or lesser amount when assimilating a local, state, or host nation standard).	6
Speed contests.	6
Speed too fast for conditions.	2
Speed too slow causing potential safety hazard.	2
Failure of operator or occupants to use available restraint system while moving. (operator assessed points)	4
Failure to properly restrain children in a child restraint system while moving. (See Note 2)	2
One (1) to Ten (10) MPH over the posted speed limit.	3
Over Ten (10) but not more than Fifteen (15) per hour above the posted speed limit.	4
Over Fifteen (15) but not more than Twenty (20) MPH above the posted speed limit.	5
Over Twenty (20) MPH above the posted speed limit.	6
Following too close.	4
Failure to yield the right of way to emergency vehicle.	4
Failure to stop for school bus or school-crossing signals.	4
Failure to obey traffic signals or traffic instructions of an enforcement officer or traffic warden; or any official regulatory traffic sign or device requiring a full stop or yield of right of way; denying entry; or requiring direction of traffic.	4
Improper passing.	4
Failure to yield (no official sign involved).	4
Failure to yield to pedestrians in designated walkway/crosswalk.	3
Failure to yield to pedestrians in designated walkway/crosswalk when violation occurs within an active school zone, add 1 point to point assessment	4
Improper turning movements (no official sign involved).	3
Wearing of headphones/earphones while driving motor vehicles (two or more wheels).	3

Failure to wear an approved helmet and/or eyewear while operating or riding on a motorcycle, MOPED, or a three- or four-wheel vehicle powered by a motorcycle-like engine	3
Improper overtaking.	3
Operating radar detection devices to indicate the presence of speed recording instruments or to transmit simulated erroneous speed (prohibited on DoD installations).	3
Operating radar detection devices within an active school zone to indicate the presence of speed recording instruments or to transmit simulated erroneous speed (prohibited on DoD installations).	4
Other moving violations (involving driver behavior only) i.e., careless driving.	3
Operating an unsafe vehicle (See Note 3).	2
Failure to maintain lane	2
Driver involved in accident is deemed responsible (added to points assessed for the violations that resulted in the accident).	1
Note 1. When two or more moving violations are committed on a single occasion, assess the points for the offense having the greater value. **Note 2**. All children up to six years of age being transported by vehicle must use a child passenger restraint system of a type, which meets Federal Motor Vehicle Safety Standard 213 as developed by the National Highway Traffic Safety Administration. Applies to not using or improper use of a child restraint device, i.e., car seat, infant carrier, booster seat, belt/strap modification (when required by manufacturer). Assess four points when no restraint system of any kind is used. **Note 3**. Use this measure for other than minor vehicle safety defects or when a driver or registrant fails to correct a minor defect (for example, a burned-out headlight not replaced within the grace period on a “Fix-It” ticket).	

Table 4.2. Point Assessment for Non-Moving Violations.

Violation	Points Assessed
No insurance/failure to provide proof of insurance	4
Driving without a driver's license/no driver's license. See Note 4.	3
Driving on a suspended or revoked license. See Note 4.	4
Note 4. Violation may result in suspension of base driving privileges in addition to assessed points.	

Chapter 5

VIOLATIONS

5.1. Traffic Violations.

5.1.1. Those individuals delegated law enforcement authority on the installation have the discretion to cite violations of this instruction as authorized by DODD 5525.4, *Enforcement of State Traffic Laws on DoD Installations* and 32 CFR 210, and 40 USC 1315, *Law enforcement authority of Secretary of Homeland Security for protection of public property*, USC, and those provisions of NMSA subject to 18 USC 7, *Special maritime and territorial jurisdiction of the United States defined,* and 18 USC 13. All portions of the installation which fall within the jurisdiction of the DAF (including the family housing units operated by the privately operated residential community manager on the installation) are within the Special Maritime and Territorial Jurisdiction of the US within the District of NM. Accordingly, traffic violations may be cited as follows:

5.1.1.1. Violations of the Federal Criminal Code-citing the pertinent federal provision, or in the absence of an on-point USC offense, violations of the NMSA, assimilated pursuant to 18 USC Sections 7 and/or 13, or Violations of this instruction (the KAFB Traffic Code), cited according to the regulatory paragraph in question [e.g., Violation of 32 CFR 210, KAFBI 31-218, Paragraph 3.8.9., Distracted Driving].

5.1.1.2. The following personnel who commit a moving traffic violation will be issued citation(s) via CVB 1805: Civilians including, but not limited to, Government civilian employees, contractors, retired military, dependents, visitors; all reservists/guardsmen not on active duty or weekend drill duty.

5.1.1.3. The following personnel who commit a moving traffic violation will be issued citation(s) via DD Form 1408: All active-duty personnel, regardless of military branch or assignment location; all reservists/guardsmen on active duty or weekend drill duty.

5.1.1.4. IAW DAFI 31-218, paragraph 4-9a, operators of government vehicles who commit moving traffic violations will be issued a DD Form 1408 regardless of their status (i.e. military or civilian).

5.1.1.5. **Parking Tickets.** Use DD Form 1408 to document all traffic violations where the driver is unable to be contacted. The special instructions on the back of the pink copy should instruct the violator to report to the BDOC within 24 hours or next duty day. If the driver is identified on scene or reports to the BDOC, issue a DD Form 1408/CVB 1805 as appropriate. **EXCEPTION:** All handicapped violations, regardless of base affiliation (Civ/Mil), will be cited via CVB 1805 IAW para 3.1.3.6.2.6..

5.1.2. **Punishments for Cited Violations of the Installation Traffic Code.**

5.1.2.1. If a traffic violation is cited under this traffic code, the punishment for said violation is set forth at 32 CFR 210. As such, violations constitute federal misdemeanor offenses which could result in the maximum punishment of a $50 fine and/or incarceration for up to 30 days (as determined by a US Magistrate Judge). Note that violations cited pursuant to the CFR or under 18 USC 7 and/or 13 are subject to different penalties. Individuals who violate this instruction are also subject to administrative actions which

could include actions pursuant to DAFI 31-218 (i.e. driving points, restrictions, on-base driving privilege revocation); employment discipline; and other administrative sanctions authorized by law.

5.1.2.2. Mandatory Identification of Unit Affiliation and Notification to Unit CCs. When a military member operating any vehicle or DoD civilian employee operating a GOV is issued a traffic citation (DD Form 1408), the citing officer must annotate the ticket to clearly show the military unit of the offender. Furthermore, pursuant to DAFI 31-218, paragraph 4-9, the 377 SFS/S2R will properly notify the unit CC that the military member/DoD civilian employee has received a citation by sending a copy of the citation.

5.1.2.3. CCs/Directors will have a 14-calendar day suspense for command action on DD Form 1408, from the date the citation is received from 377 SFS/S2R. If command action is not received by the suspense date a "Notice of Late Suspense" will be sent giving an additional 7 calendar days to complete command action. If the second suspense is not met a second "Notice of Late Suspense" will be sent with a courtesy copy to the next higher CC/director in the violator's chain of command with an immediate suspense.

5.2. Administrative Due Process for Driving Suspensions and Revocations. In addition to the guidelines in DAFI 31-218 Chapter 2 the following will apply:

5.2.1. Unit CCs may request, in writing to the 377 MSG/CC, suspension of on-base driving privileges for any problem driver or drivers whose attitudes and actions are unsafe through the 377 SFS/S2R. If the request is approved, the individual will be directed to report to 377 SFS/S2R to sign/acknowledge receipt by endorsing the 377 MSG/CC signed memorandum.

5.2.2. Suspensions and revocations from other DOD installations will be enforced on KAFB. Upon notification of an inbound or newly arrived individual with suspended or revoked driving privileges, the 377 SFS/S2R will notify the individual's gaining unit CC to ensure the individual is aware his/her suspension or revocation is still in effect on KAFB. Individuals may appeal driving suspension/revocations to the 377 MSG/CC IAW the procedures in Section 5.2.7. Individuals will be added to the Suspension/Revocation/Debarment/Warrant (SRBW) listing through the AFJIS. The 377 SFS Pass and Registration Section (377 SFS/S5B) will update the SRBW listing in the Defense Biometric Identification System (DBIDS).

5.2.3. **Suspension/Revocation Guidelines.** The 377 MSG/CC may suspend or revoke driving privileges for offenses that occur on or off the installation. See **Table 5.1** for guidelines. ***NOTE:*** These guidelines only provide those ***minimum*** periods established specifically for KAFB outside of the directives listed in DAFI 31-218 (I); therefore, this is not all-inclusive, and the 377 MSG/CC reserves the authority to determine suspensions/revocations timeframes based on the circumstances/evidence on a case-by-case basis. When determining suspension/revocation timelines, the term "conviction" applies to any civil/military administrative, non-judicial, or judicial/criminal action.

5.2.3.1. For purposes of this instruction, ***Suspension*** of driving privileges entitles offenders to follow Administrative Hearing (**para. 5.2.5.4**)/Appeal (**para. 5.2.3.3**) procedures. Unless noted otherwise, initial suspensions will be for a period of **1 year** or until the matter is resolved, whichever is longer. ***NOTE:*** For the drug/alcohol-related

offenses of DUI injury accident (regardless of Blood Alcohol Content (BAC)/Breath Alcohol Content (BrAC)), or Test Refusal (under Implied Consent), eligibility for an initial hearing/appeal is limited to eligibility for Mission Essential driving only. The matter MUST be resolved before the provisions of paragraph **5.2.5.4 and/or 5.2.5.7** can apply

5.2.3.2. For purposes of this instruction, an initial ***Revocation*** of driving privileges is absolute pending resolution of the incident/offense. Offenders are entitled to Administrative Hearing procedures (**para. 5.2.5.4**) and cannot be granted limited driving privileges until the matter is resolved.

5.2.3.2.1. IAW DAFI 31-218, revocations will be in addition to suspensions for other offenses and become effective from the date of Administrative, Non-Judicial, or Judicial action.

5.2.3.2.2. Revocations void any Limited/Restricted driving privileges granted during periods of suspension.

5.2.3.3. Once the matter has been resolved, offenders may file a written appeal for limited driving privileges. Follow Administrative Hearing procedures (**para. 5.2.5.4**) for guidance (excluding timelines). For alcohol related offenses, if the underlying offense is acquitted, dismissed, or otherwise disposed of, any revocation(s) will remain in effect. The duration of the revocation(s) will be re-calculated from the date of offense.

5.2.3.4. Multiple ***suspensions/revocations*** will run consecutively as opposed to concurrently unless directed by the 377 MSG/CC or prohibited by regulations.

5.2.4. Operating a motor vehicle or parking at any of the base gates or parking lots within the identified boundaries of KAFB is not authorized and will constitute a violation of the suspension/revocation.

Table 5.1. Suspension/Revocation Guideline.

Violation	**Suspension/Revocation Period**	**Subsequent Violations (within 12 months of last suspension/revocation)**
DUI (below 2x current legal limit)	Immediate **(suspension)**/1 Year **(revocation)** upon conviction from date of offense	1 Year **(revocation)**
DUI (above 2x current legal limit or involved in DUI injury accident regardless of BAC)	Immediate 2 Year (**revocation)** from the date of the incident	**+ 2 years (revocation)**
Test Refusal (under Implied Consent)	Immediate 2 Year (**revocation)**	**+ 2 years (revocation)**
Driving with a suspended/revoked license pursuant to NMSA 66-8-122G	1 Year **(revocation)** (**ARRESTABLE OFFENSE:** apprehension/detainment is Mandatory for incidents involving injury or property damage; coordination w/SJA and AUSA is required PRIOR to processing)	1 Year **(revocation)**
Operating a motor vehicle without an installed ignition interlock device/interlock driver's license when required pursuant to NMSA 66-8-102N	1 Year **(revocation)**	1 Year **(revocation)**
Driving with a suspended or revoked driver's license	Immediate **(suspension)**/2-year **(revocation)** mandatory on determination of facts.	**+ 2 years (revocation)**
Driving while installation driving privileges are revoked or suspended	+2 years to begin at the end of the current revocation/suspension period **(revocation)**	+2 years to begin at the end of the current revocation/suspension period **(revocation)**
Manslaughter (or negligent homicide by vehicle) resulting from the operation of a motor vehicle.	Immediate **(suspension)**/1 year **(revocation)** mandatory on conviction	**+ 2 years (revocation)**
Use of a motor vehicle in the commission of a felony	Immediate **(suspension)**/1 year **(revocation)** mandatory on conviction	**+ 2 year (revocation)**

Fleeing the scene of an accident involving death or personal injury (hit and run).	Immediate **(suspension)**/1 year **(revocation)** mandatory on conviction	**+ 2 year (revocation)**
Perjury or making a false statement or affidavit under oath to responsible officials relating to the ownership or operation of motor vehicles.	Immediate **(suspension)**/1 year **(revocation)** mandatory on conviction	**+ 2 year (revocation)**
Unauthorized use of a motor vehicle belonging to another, when the act does not amount to a felony.	Immediate **(suspension)**/1 year **(revocation)** mandatory on conviction	**+ 2 year (revocation)**
Mental or physical impairment (**NOT DUI/Drugs**) to the degree rendered incompetent to drive.	Suspension for a period of 6 months or less or revocation for a period not to exceed 1 year is discretionary.	**+ 2 year (revocation)**
Commission of an offense in another Jurisdiction which, if committed on the installation, would be grounds for suspension or revocation.	Suspension for a period of 6 months or less or revocation for a period not to exceed 1 year is discretionary.	**+ 2 year (revocation)**
Permitting an unlawful or fraudulent use of an official driver's license.	Suspension for a period of 6 months or less or revocation for a period not to exceed 1 year is discretionary.	**+ 2 year (revocation)**
Conviction of fleeing, or attempting to elude, a police officer.	Suspension for a period of 6 months or less or revocation for a period not to exceed 1 year is discretionary.	**+ 2 year (revocation)**
Any vehicle operator who is cited for Reckless Driving (willful and wanton disregard for the safety of persons or property)	6 Months **(revocation) (ARRESTABLE OFFENSE:** apprehension/detainment is Mandatory for incidents involving injury or property damage; coordinate w/SJA before issuing citation**)**	
Failure to provide valid proof of insurance covering the time of the traffic stop.	6 Months (see para. 5.2.5.5.)	6 Months
Refusal to submit to a vehicle stop and inspection	6 Months	1 Year
A vehicle operator receives three valid citations for parking violations in any six-month period.	30 Days	6 Months

Failure of the operator or occupants to utilize restraint system devices while the vehicle is in motion. (see notes 1 and 2 below)	1st Offense = Point Assessment/Fine	2nd Offense: 30 days; 3rd Offense: 6 months; 4th Offense: 1 year
Littering from a motor vehicle.	30 Days	30 Days
Any vehicle operator who receives two moving violation citations or is cited as being at fault in a vehicle accident in combination with one moving violation within a 60-day period regardless of points assessed to their driving record.	30 Days	
Any vehicle operator who receives three citations for moving violations or is cited as being at fault in a vehicle accident in combination with two moving violations within a 90-day period **regardless of points assessed to their driving record.**	60 Days	
Individuals who accumulate 12 traffic points within 12-consecutive months or 18 points within 24-consecutive months.	6 Months	
Note 1. Base-affiliated civilians will be exposed to the same penalties. **Note 2**. The Installation Commander or designee, with the coordination of the Staff Judge Advocate, may increase the suspension period on a case-by-case basis.		

5.2.5. The 377 SFS will issue a pre-signed, written notice of suspension or revocation from the 377 MSG/CC for predetermined offenses (**Attachment 3**). The issued written notice specifies when the suspension/revocation becomes effective, the effective period of the suspension/revocation, and the administrative hearing and appeal process.

5.2.5.1. In the event an individual's driving privileges are suspended or revoked by the 377 MSG/CC and a pre-signed letter was not issued, active duty and civilian-affiliated employees must report with their supervisor to 377 SFS/S2R to sign acknowledgement of the suspension/revocation.

5.2.5.2. Civilian non-affiliated personnel (i.e., civilian employees, contractors, retirees, dependents) will be served by certified mail if a pre-signed letter was not issued at the time of the offense. If after two documented attempts, contact is not made with the individual, the suspension/revocation is immediate and considered a refusal to sign.

5.2.5.3. Suspensions and revocations for ***non-alcohol*** related offenses will become effective 14 calendar days after written notice is received unless an application for a hearing is made by the affected person within the 14-calendar day period. Violators must meet all requirements to operate a vehicle during the 14-day period (i.e., valid driver's license, vehicle registration and insurance)

5.2.5.4. **Administrative Hearing Requests.** A request for an administrative hearing can be made within 14 calendar days of suspension/revocation notification. Requests for administrative hearings are initiated by submitting a written request to 377 SFS/S2R. The 377 SFS/S2R will forward requests to the 377 MSG, Executive Officer (CCE), who will notify the individual of the hearing date. Hearings should take place within 14 days of the request. The 377 MSG/CC can deny the hearing request. ***NOTE:*** For the drug/alcohol-related offenses of DUI injury accident (regardless of BAC/ BrAC), or Test Refusal (under Implied Consent), the matter MUST be resolved before the provisions of this paragraph and/or 5.2.5.7. can apply.

5.2.5.4.1. At the hearing, individuals may present evidence, witnesses, and be represented by counsel. Military personnel can be represented by civilian counsel (at their own expense) or assigned military counsel. Civilian employees are entitled to have a personal representative present at the administrative hearing IAW applicable laws and instructions.

5.2.5.4.2. If the government fails to hold the hearing within 14 days of the request, the suspension or revocation will not take place until the person is granted a hearing before the 377 MSG/CC.

5.2.5.4.3. If the affected person requests the hearing be continued to a date beyond the 14-day period, the suspension or revocation will become effective immediately upon receipt of the written notification requesting the hearing continuance.

5.2.5.4.4. Failure to appear for the scheduled hearing without notification and approval from the 377 MSG/CCE may result in forfeiture of the privilege to an administrative hearing.

5.2.5.5. When individuals are cited and revoked for no insurance or suspended license, they may have their suspension removed if they bring proof their insurance or driver's license was valid at the time the citation(s) was issued, within five (5) duty days of the incident to 377 SFS/S2R.

5.2.5.6. The 377 MSG/CC is the designated rebuttal authority for SF processing of DD Form 1408s, Suspensions and Revocations on KAFB. CVB 1805s are not rebuttable as they are handled by the US Federal Magistrate Court system.

5.2.5.6.1. **Requests for rebuttal of a DD Form 1408.** Rebuttal requests must be received by 377 SFS/S2R within five (5) duty days of the citation date. Once received the member will have 14 additional calendar days to complete the appeal memorandum, addressed to the 377 MSG/CC, and submit it to 377 SFS/S2R. The letter must be endorsed by his/her CC/director and the CC/director must concur/non-concur with the violator's request. Members are highly encouraged to submit supporting documentation.

5.2.5.7. **Reinstatement of Driving Privileges.** Once a suspension/revocation incident is resolved (acquitted/dismissed or punishment issued), a written request for limited or full reinstatement may be made. The request must be submitted to the 377 SFS/S2R who will route it through 377 ABW/SJA, who will review the requests and provide a recommendation to the 377 MSG/CC. The request must contain a justification for reinstatement. Once a decision is made by the 377 MSG/CC, the approval/denial is forwarded to the 377 SFS/S2R for required action and filing. ***NOTE:*** Limited driving privileges cannot be granted to individuals whose license is revoked or suspended by state issuing authorities.

5.2.5.7.1. Unit CCs/directors may request limited or full reinstatement of driving privileges for personnel under their command. ***NOTE:*** *For individuals under revocation for Test Refusal, CCs/directors may only request limited GOV driving privileges for mission essential purposes.*

5.2.5.7.2. Base Affiliated personnel (i.e., military, civilian employees, retired military, dependents) whose base driving privileges are ***suspended*** because of a driving offense may request full reinstatement or limited driving privileges.

5.2.5.7.2.1. Individuals whose base driving privileges are ***suspended*** for a Driving while intoxicated (DWI) offense may only request limited driving privileges. The request must show a valid reason (Mission Essential or extreme family hardship) for the request.

5.2.5.7.2.2. Individuals whose driving privileges are ***revoked*** for offenses other than DUI injury accident regardless of BAC/BrAC or Testing Refusal under Implied Consent may only request limited driving privileges for mission essential purposes.

5.2.5.7.2.3. Individuals whose driving privileges are ***revoked*** for DUI injury accident (regardless of BAC/BrAC), or Test Refusal (under Implied Consent) may *NOT* request limited driving privileges. (see NOTE in para.5.2.5.7.1.)

5.2.5.7.3. Requests for limited driving privileges cannot be submitted before:

5.2.5.7.3.1. An Administrative Hearing (**para. 5.2.5.4**) is conducted

5.2.5.7.3.2. An Administrative Hearing is requested and denied, or

5.2.5.7.3.3. The 14-day time period for requesting the hearing has passed without a request.

5.2.5.7.4. Individuals who are referred to alcohol education classes may apply for a waiver of driver improvement training by submitting a written request to the 377 MSG/CC through their unit CC, 377th Medical Group (377 MDG) Mental Health and the 377 SFS/S2R.

MICHAEL POWER, Colonel, USAF
Commander

Attachment 1

GLOSSARY OF REFERENCES AND SUPPORTING INFORMATION

References

DAFI 31-103, *Law Enforcement Operations,* 1 May 2024

AFI 33-322, *Records Management and Information Governance Program*, 23 March 2020

AFI 33-332, *Air Force Privacy and Civil Liberties Program,* 10 March 2020

AFI 90-802, *Risk Management*, 1 April 2019

DAFI 91-207, *The US Air Force Traffic Safety Program,* 26 July 2019

DAFI 31-218, *Motor Vehicle Traffic Supervision*, 22 May 2006

DODD 5525.4, *Enforcement of State Traffic Laws on DoD Installations*, 30 September 2020

DODI 6055.04, *DoD Motor Vehicle and Traffic Safety*, 27 August 2021

18 USC 13, *Assimilative Crimes Act,* 1940

18 USC 7, *Special maritime and territorial jurisdiction of the United States defined,* 26 October 2001

40 USC 1315, *Law enforcement authority of Secretary of Homeland Security for protection of public property,* 25 November 2002

32 CFR 210, *Enforcement of State Traffic Laws on DOD Installations*, 1 July 2022

32 CFR 634, *Motor Vehicle Traffic Supervision,* 12 May 2005

NMSA 66-7-352.5A or B, *Unauthorized use; penalties,* 14 June 2019

NMSA 66-7-352.5D, *Unauthorized use; penalties*, 14 June 2019

UFC 3-120-01, *Design: Sign Standards,* 1 February 2023

MUTCD 2B.46, *Parking, Standing, and Stopping Signs,* 15 January 2010

Prescribed Forms

None

Adopted Forms

AF Form 847, *Recommendation for Change of Publication*

CVB 1805, *United States District Court Violation Notice*

DD Form 1408, *Armed Forces Traffic Ticket*

DD Form 2504, *Abandoned Vehicle Notice*

DD Form 2506, *Vehicle Impoundment Report*

DD Form 2507, *Notice of Vehicle Impoundment*

Acronyms and Abbreviations

150 SOW—150th Special Operations Wing

58 SOW—58thSpecial Operations Wing

AAA—American Automobile Association

ABW—Air Base Wing

AF—Air Force

AFI—Air Force Instruction

AFJIS—Air Force Justice Information System

AFMSP—Air Force Motorcycle Safety Program

AFOSI—Air Force Office Special Investigations

AFRC—Air Force Reserve Command

AFRIMS—Air Force Records Information Management System

AFSC—Air Force Specialty Code

ANG—Air National Guard

ANSI—American National Standards Institute

ATV—All Terrain Vehicle

BAC—Blood Alcohol Content

BDOC—Base Defense Operations Center

BrAC—Breath Alcohol Content

BTE—Base Traffic Engineer

BTWG—Base Traffic Working Group

CC—Commander

CCE—Executive Officer

CE—Civil Engineer

CFR—Code of Federal Regulations

CVB—Central Violation Bureau

DAF—Department of the Air Force

DAFI—Department of the Air Force Instruction

DBIDS—Defense Biometric Identification System

DD—Department of Defense Form

DFC—Defense Force Commander

DoD—Department of Defense

DODI—Department of Defense Instruction

DOE—Department of Energy

DOT—Department of Transportation

DRE—Drug Recognition Expert

DUI—Driving Under the Influence

DVD—Digital video disc

DWI—Driving while intoxicated

FSS—Force Support Squadron

GOV—Government Owned Vehicle

GPS—Global Positioning System

IACP—Installation Access Control Point

IAW—In Accordance With

KAFB—Kirtland Air Force Base

LGRVM—Vehicle Maintenance Element

LRS—Logistics Readiness Squadron

LSV—Low-Speed Vehicle

MDG—Medical Group

MPH—Miles Per Hour

MSG—Mission Support Group

MSR—Motorcycle Safety Representative

MUTCD—Manual on Uniform Traffic Control Devices

NM—New Mexico

NMSA—New Mexico Statutes Annotated

OPR—Office of Primary Responsibility

PD—Position Description

POV—Privately Owned Vehicle

PPE—Personal Protective Equipment

PT—Physical Training

RDS—Records Disposition Schedule

RMV—Recreational Motor Vehicle

RV—Recreational Vehicle

S2I—377 SFS Investigations

S2R—377 SFS Reports and Analysis Section

S3—377 SFS Operations and Training

S3O—377 SFS Operations Section

S5B—377 SFS Pass and Registration Section

SE—377 ABW Safety Office

SEL—Senior Enlisted Leaders

SF—Security Forces

SFG—Security Forces Group

SFS—Security Forces Squadron

SFST—Standardized Field Sobriety Test

SJA—Staff Judge Advocate

SNL—Sandia National Laboratory

SRBW—Suspension/Revocation/Debarment/Warrant

SSCC—Site Security Control Center

US—United States

UCMJ—Uniform Code of Military Justice

UFC—Uniform Facilities Criteria

USC—United States Code

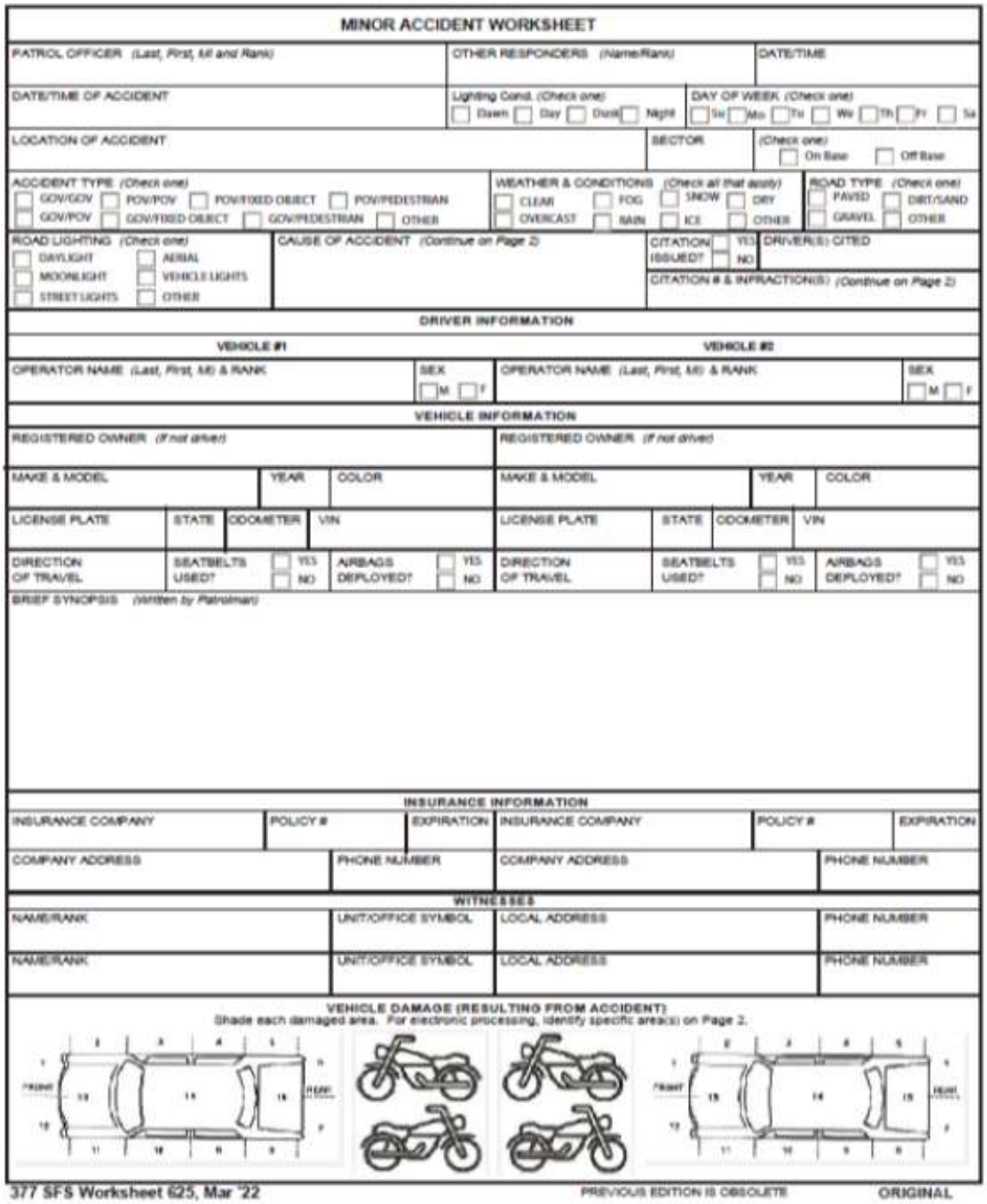
UTV—Utility Terrain Vehicle

WSSS—Weapons System Security Squadron

Attachment 2

MINOR VEHICLE ACCIDENT WORKSHEET (EXAMPLE)

Figure A2.1. Minor Vehicle Accident Worksheet.



MINOR ACCIDENT WORKSHEET

PATROL OFFICER (Last, First, MI and Rank) | OTHER RESPONDERS (Name/Rank) | DATE/TIME

DATE/TIME OF ACCIDENT | Lighting Cond. (Check one): Dawn, Day, Dusk, Night | DAY OF WEEK (Check one): Su, Mo, Tu, We, Th, Fr, Sa

LOCATION OF ACCIDENT | SECTOR | (Check one): On Base, Off Base

ACCIDENT TYPE (Check one): GOV/GOV, POV/POV, POV/FIXED OBJECT, POV/PEDESTRIAN, GOV/POV, GOV/FIXED OBJECT, GOV/PEDESTRIAN, OTHER

WEATHER & CONDITIONS (Check all that apply): CLEAR, FOG, SNOW, DRY, OVERCAST, RAIN, ICE, OTHER

ROAD TYPE (Check one): PAVED, DIRT/SAND, GRAVEL, OTHER

ROAD LIGHTING (Check one): DAYLIGHT, AERIAL, MOONLIGHT, VEHICLE LIGHTS, STREET LIGHTS, OTHER

CAUSE OF ACCIDENT (Continue on Page 2)

CITATION ISSUED? YES NO | DRIVER(S) CITED

CITATION # & INFRACTION(S) (Continue on Page 2)

DRIVER INFORMATION

VEHICLE #1			VEHICLE #2		
OPERATOR NAME (Last, First, MI) & RANK		SEX M F	OPERATOR NAME (Last, First, MI) & RANK		SEX M F

VEHICLE INFORMATION

	VEHICLE #1				VEHICLE #2			
REGISTERED OWNER (If not driver)								
MAKE & MODEL		YEAR	COLOR			YEAR	COLOR	
LICENSE PLATE	STATE	ODOMETER	VIN			ODOMETER	VIN	
DIRECTION OF TRAVEL	SEATBELTS USED? YES NO	AIRBAGS DEPLOYED? YES NO			SEATBELTS USED? YES NO	AIRBAGS DEPLOYED? YES NO		

BRIEF SYNOPSIS (Written by Patrolman)

INSURANCE INFORMATION

INSURANCE COMPANY	POLICY #	EXPIRATION	INSURANCE COMPANY	POLICY #	EXPIRATION
COMPANY ADDRESS	PHONE NUMBER		COMPANY ADDRESS	PHONE NUMBER	

WITNESSES

NAME/RANK	UNIT/OFFICE SYMBOL	LOCAL ADDRESS	PHONE NUMBER
NAME/RANK	UNIT/OFFICE SYMBOL	LOCAL ADDRESS	PHONE NUMBER

VEHICLE DAMAGE (RESULTING FROM ACCIDENT)
Shade each damaged area. For electronic processing, identify specific area(s) on Page 2.

377 SFS Worksheet 625, Mar '22 PREVIOUS EDITION IS OBSOLETE ORIGINAL

Figure A2.2. Minor Vehicle Accident Worksheet Instructions.

This form is conducted in triplicate: the original (un-redacted first page) goes with the LE patrolman, the first copy (redacted right side) goes to the operator of Vehicle 1 and the second (redacted left side) copy goes to the operator of Vehicle 2.

Block:	Description:
1	Name of the Patrolman (Rank/Last Name)
2	Other Responders (Rank/Last Name)
3	**Date/Time of Report NOT Incident (YYYYMMDD/24 HR)**
4	Date/time of accident (YYYYMMDD/24 HR)
5	Lighting Conditions
6	Day of Week
7	Location of Accident (nearest Intersection and Distance/Direction)
8	Sector (East/West/South)
9	On/Off Base
10	Accident Type (annotate OTHER on Pg. 2)
11	Weather conditions
12	Road Type
13	Road Lighting
14	Cause of accident (Short Description; Weather, Obstructed Vision, Careless Driving, etc.)
15	Citation Issued
16	Driver(s) Cited (1, 2 or 1/2; Describe on Pg. 2)
17	Citation # & Infractions (Type, # and plain text description; continue on Pg 2 as needed)
18	Name / Rank of Operator 1 (All other info should be on AF 3907/NCIC Rip)
19	Sex of Vehicle 1 Operator
20	Name / Rank of Vehicle 2 Operator (All other info should be on AF 3907/NCIC Rip)
21	Sex of Vehicle 2 Operator
22	Vehicle 1 Information (Include NCIC Rip)
23	Vehicle 2 Information (Include NCIC Rip)
24	Synopsis (More detailed than #14; who what where why when how; continue on Pg 2 as needed)
25	Vehicle 1 Insurance Information
26	Vehicle 2 Insurance Information
27	Witness Information (Full Info on AF 3907)
28	Vehicle Damage Shade-Ins (15 sections-shade the whole section and detail in Synopsis)
29	(Reverse) Additional Notes

Advise both drivers to exchange insurance information. If an Operator does not wish to disclose, they may be issued a citation under NMSA 66-7-203, *Duty to Give Information and Render Aid.*

REMEMBER THE DRIVER AT FAULT IS NORMALLY OPERATOR 1.

DO NOT GIVE 3907 INFORMATION TO ANYONE! PRIVACY ACT/VWAP RULES PREVENT IT.

Forward 3907s, ORIGINAL 625, NCIC RIPS and a COPY OF BLOTTER ENTRY in a Case File folder to S2R for processing.

Attachment 3

MSG PRE-SIGNED SUSPENSION/REVOCATION LETTER (EXAMPLE)

Figure A3.1. MSG Pre-signed Suspension/Revocation Letter EXAMPLE.

MEMORANDUM FOR NAME:_____
SSAN:_____
ADDRESS:_____

FROM: 377 MSG/CC
2000 Wyoming Blvd SE
Kirtland AFB, NM 87117-5662

SUBJECT: Suspension/Revocation of Base Driving Privileges

1. Service of this document identifies the intent to remove your base driving privileges.

- In accordance with AFI 31-218/*Motor Vehicle Traffic Supervision* and the Kirtland AFB Supplement, your driving privileges will remain valid for no less than 14 calendar days from the date of issue with the below ***exceptions***:
  - For Driving Under the Influence (DUI) (below 2X the legal limit), your driving privileges will be ***suspended*** immediately.
  - For DUI with a BAC/BrAC of 2X above the legal limit, DUI injury accident (regardless of BAC/BrAC), or Test Refusal (under Implied Consent), your base driving privileges will be ***revoked*** immediately.
- *NOTE: It is illegal to operate a motor vehicle, on or off the installation, with a suspended or revoked license.*

2. Unless noted below, suspensions or revocations will take effect 14 calendar days after signing this document. Refer to paragraphs 3-5 for instructions to request an Administrative Hearing during this period. ***In accordance with AFI 31-218, revocations for Test Refusal are immediate and shall remain in effect during this period.***

Your driving privileges will be **(suspended)/(revoked)** on:

Offense date: _____Time: _____Location: _____

( ) You were detained or apprehended for DUI. Your installation driving privileges are **suspended** immediately for a period of **one (1) year** or until the matter is resolved, *whichever is longer*. If you are found to be guilty of the charge by a military or civilian court, receive administrative action, or non-judicial punishment, your installation driving privileges will be **revoked** for an effective period of **one (1) year [see AFI 31-218, para. 2-4b(4)]**.

( ) You were detained or apprehended for DUI with a BAC/BrAC 2X above the legal limit or were involved in a DUI injury accident (regardless of BAC/BrAC). Your installation driving privileges are **revoked** for a period of **one (1) year** or until the matter is resolved, *whichever is longer*. You are entitled to request an Administrative Hearing ***except*** in cases of an accident involving injury or death. If you are found to be guilty of the charge by a military or civilian court, receive administrative action, or non-judicial punishment, your installation driving privileges will remain **revoked** for an effective period of **two (2) years [see AFI 31-218, para. 2-4b(4)]**.

( ) You were detained or apprehended for DUI and refused to submit to a breath or blood alcohol test (Test Refusal). Your installation driving privileges are immediately **revoked** for a period of **two (2) years**. **You may NOT request an Administrative Hearing. You may not request Limited/Restricted privileges until the matter is resolved.** If you are found to be guilty of the charge by a military or civilian court, receive administrative

Figure A3.2. MSG Pre-signed Suspension/Revocation Letter EXAMPLE *(Continued)*.

action, or non-judicial punishment, your installation driving privileges will remain **revoked** for an effective period of **two (2) years [see AFI 31-218, para. 2-4b(4)]**.

( ) You were detained or apprehended for driving with a suspended/revoked license pursuant to NMSA 66-8-122g (Arrestable Clause for DUI) or any other State's applicable statutes. Your installation driving privileges will be ***revoked*** for a period of **two (2) years**.

( ) You were detained or apprehended for operating a motor vehicle without an installed ignition interlock device/interlock driver's license when required pursuant to NMSA 66-8-102N or any other State's applicable statutes. Your installation driving privileges will be ***revoked*** for a period of **one (1) year**.

( ) You were detained or apprehended for driving with a suspended license. Your installation driving privileges will be revoked for a period of **one (1) year**. **(Base affiliated personnel only)**

( ) You were detained or apprehended for driving during your base driving suspension/revocation period. Your installation driving privileges are ***revoked*** for an additional **two (2) years**, to begin at the end of your current suspension/revocation.

( ) You were detained or apprehended for refusing to submit to a vehicle stop and inspection. Your installation driving privileges are ***suspended*** for a period of **six (6) months**. **(Base affiliated personnel only)**

( ) You were detained or apprehended for failure to provide proof of financial responsibility/no insurance. You have ***five 5 duty days*** from the date of this letter to provide proof you had valid vehicle insurance *at the time of the incident* to the Reports and Analysis Branch (377 SFS/S2R). If not provided by that time, your installation driving privileges will be ***suspended*** for a period of **six (6) months**, effective at the end of the 14-day review period, as indicated in paragraph 1. Refer questions to (505) 846-1319.

( ) **(S2R USE ONLY)** You have been identified as having a suspension/revocation eligible offense on your driving record (accumulated points, civilian action, CC Request, etc.). All of the appeal actions below are available to you. Should you decide not to appeal, your driving privileges will be suspended/revoked on the date above.

Cause for suspension/revocation: _____

Your driving privileges will be (suspended)/(revoked) for a period of _____

3. You may submit a ***written request*** for an Administrative Hearing to challenge/vacate this action within 14 calendar days from the date you received this notice. If military or US Government employee/ Contractor, your request for a hearing must be endorsed by your unit commander or supervisor and forwarded to 377 SFS/S2R. Civilians not affiliated with this base, active-duty dependents, or retirees will send their request directly to 377 SFS/S2R. If you do not request a hearing, your driving privileges will be suspended/revoked as noted above until the suspension/revocation period has been served.

4. If requested, a hearing may be granted at the discretion of the 377th Mission Support Group Commander.
   - If denied, the suspension/revocation will take effect (or remain in effect) as noted above.
   - If granted, it should be held within 14 days of your request. At the hearing, you may present evidence and witnesses and be represented by counsel. This is not an adversarial proceeding. Rather, it is simply your opportunity to present information and request reinstatement of your driving privileges. All civilians and military personnel may be represented by civilian counsel at their own expense. Military members may also be represented by assigned military counsel. United States Government civilian employees may have a personal representative present.
   - When a hearing is requested and scheduled within the 14-day window, the temporary suspension of driving privileges indicated in paragraph 1 will not take effect until after the hearing date.

Figure A3.3. MSG Pre-signed Suspension/Revocation Letter EXAMPLE *(Continued)*.

- If, due to action by the Government, a hearing is not held within 14 calendar days of receipt, the suspension will not take place until such time as the person is granted a hearing and notified.
- If you request the hearing be continued to a date beyond the 14-day period, the suspension will become effective immediately on receipt of notice that the request for continuance is granted and remain in force pending a hearing at a scheduled hearing date.

5. Any determinations made at the hearing are without prejudice to your rights or the rights of the government in subsequent criminal or administrative proceedings involving the same or a related incident.

6. Restricted driving privileges may be granted for mission requirements and unusual personal or family hardship. Civilians not affiliated with this base, active-duty dependents, or retirees requesting restricted driving privileges will send their request directly to 377 SFS/S2R. Any restricted privileges granted will be specified in writing and provided to you.

- **Personnel whose driving privileges are revoked for DUI injury accident (regardless of BAC/BrAC), or Test Refusal (under Implied Consent) may only be granted GOV driving privileges for Mission Essential tasks.**

7. You may request reinstatement of your driving privileges in writing if you are exonerated of the charges filed against you. Military or US Government employee/Contractor requests must be endorsed by the Unit Commander/Director to 377 SFS/S2R.

8. Reinstatement of base driving privileges will be automatic, provided all revocations applicable have expired, proper proof of completion of remedial driving course and/or substance abuse counseling has been provided, and reinstatement requirements of individual's home State and/or State the individual may have been suspended in, have been met.

9. You are advised that although reinstatement is automatic, attendance of a certified Alcohol Awareness Seminar is mandatory if your driving privileges were revoked as a result of DUI. Failure to complete the mandatory Alcohol Awareness Seminar will lead to an extension of the revocation. Military members may schedule this class through Life Skills at 846-3305. Military dependents and civilians must attend an off-base course.

10. Failure to obey the driving restrictions imposed will result in 2 additional years of base driving revocation and may lead to further civil, military, and/or administrative actions such as debarment from the installation or termination of installation housing privileges. Parking at any of the base gates or parking lots within the confines of Kirtland AFB is not authorized and will constitute a violation of this suspension/revocation.

(SIGNATURE), Colonel, USAF
Commander, 377th Mission Support Group